

SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL ITEMS <i>OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, AND 30</i>				1. REQUISITION NUMBER		PAGE 1 OF 57	
2. CONTRACT NO.		3. AWARD/EFFECTIVE DATE		4. ORDER NUMBER		5. SOLICITATION NUMBER W912DR25Q0021	
7. FOR SOLICITATION INFORMATION CALL:		a. NAME ANGELA S PADUA				b. TELEPHONE NUMBER (No Collect Calls)	
						8. OFFER DUE DATE/LOCAL TIME 11:00 AM 02 Jun 2025	
9. ISSUED BY USACE, BALTIMORE DISTRICT 2 HOPKINS PLAZA BALTIMORE MD 21201 TEL: FAX:		CODE W912DR		10. THIS ACQUISITION IS ☐ UNRESTRICTED OR ☒ SET ASIDE: 100 % FOR: ☒ SMALL BUSINESS ☐ WOMEN-OWNED SMALL BUSINESS (WOSB) ☐ HUBZONE SMALL BUSINESS ☐ ELIGIBLE UNDER THE WOMEN-OWNED SMALL BUSINESS PROGRAM ☐ SERVICE-DISABLED VETERAN-OWNED SMALL BUSINESS ☐ EDWOSB ☐ 8(A) NAICS: 561730 SIZE STANDARD: \$9,500,000			
11. DELIVERY FOR FOB DESTINATION UNLESS BLOCK IS MARKED ☐ SEE SCHEDULE		12. DISCOUNT TERMS		13a. THIS CONTRACT IS A RATED ORDER UNDER DPAS (15 CFR 700) ☐		13b. RATING	
						14. METHOD OF SOLICITATION ☒ RFQ ☐ IFB ☐ RFP	
15. DELIVER TO SEE SCHEDULE		CODE		16. ADMINISTERED BY CODE			
17a. CONTRACTOR/OFFEROR TELEPHONE NO.		CODE		FACILITY CODE		18a. PAYMENT WILL BE MADE BY CODE	
☐ 17b. CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER		18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a. UNLESS BLOCK BELOW IS CHECKED ☐ SEE ADDENDUM					
19. ITEM NO.		20. SCHEDULE OF SUPPLIES/ SERVICES			21. QUANTITY		22. UNIT
		SEE SCHEDULE					
25. ACCOUNTING AND APPROPRIATION DATA						26. TOTAL AWARD AMOUNT (For Gov't. Use Only)	
☐ 27a. SOLICITATION INCORPORATES BY REFERENCE FAR 52.212-1. 52.212-4. FAR 52.212-3. 52.212-5 ARE ATTACHED. ADDENDA ☐ ARE ☐ ARE NOT ATTACHED							
☐ 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA ☐ ARE ☐ ARE NOT ATTACHED							
☒ 28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN 2 COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED.					☐ 29. AWARD OF CONTRACT: REF. OFFER DATED . YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN, IS ACCEPTED AS TO ITEMS:		
30a. SIGNATURE OF OFFEROR/CONTRACTOR				31a. UNITED STATES OF AMERICA (SIGNATURE OF CONTRACTING OFFICER)			
30b. NAME AND TITLE OF SIGNER (TYPE OR PRINT)		30c. DATE SIGNED		31b. NAME OF CONTRACTING OFFICER (TYPE OR PRINT) TEL: EMAIL:		31c. DATE SIGNED	

SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL ITEMS (CONTINUED)				PAGE 2 OF 57		
19. ITEM NO.	20. SCHEDULE OF SUPPLIES/ SERVICES		21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT
	SEE SCHEDULE					
32a. QUANTITY IN COLUMN 21 HAS BEEN ☐ RECEIVED ☐ INSPECTED ☐ ACCEPTED, AND CONFORMS TO THE CONTRACT, EXCEPT AS NOTED: _____						
32b. SIGNATURE OF AUTHORIZED GOVERNMENT REPRESENTATIVE			32c. DATE	32d. PRINTED NAME AND TITLE OF AUTHORIZED GOVERNMENT REPRESENTATIVE		
32e. MAILING ADDRESS OF AUTHORIZED GOVERNMENT REPRESENTATIVE				32f. TELEPHONE NUMBER OF AUTHORIZED GOVERNMENT REPRESENTATIVE		
				32g. E-MAIL OF AUTHORIZED GOVERNMENT REPRESENTATIVE		
33. SHIP NUMBER		34. VOUCHER NUMBER	35. AMOUNT VERIFIED CORRECT FOR	36. PAYMENT ☐ COMPLETE ☐ PARTIAL ☐ FINAL		37. CHECK NUMBER
38. S/R ACCOUNT NUMBER		39. S/R VOUCHER NUMBER	40. PAID BY			
41a. I CERTIFY THIS ACCOUNT IS CORRECT AND PROPER FOR PAYMENT 41b. SIGNATURE AND TITLE OF CERTIFYING OFFICER			41c. DATE	42a. RECEIVED BY <i>(Print)</i>		
				42b. RECEIVED AT <i>(Location)</i>		
				42c. DATE REC'D <i>(YY/MM/DD)</i>	42d. TOTAL CONTAINERS	

Section A - Solicitation/Contract Form

CONTRACTING OFFICER STATEMENT

Only a warranted Contracting Officer (either a Contracting Officer or an Administrative Contracting Officer (ACO)), acting within their appointed limits, has the authority to issue modifications or otherwise change the terms and conditions of this contract. If an individual other than the Contracting Officer attempts to make changes to the terms and conditions of this contract, you shall not proceed with the change and shall immediately notify the Contracting Officer. Proceeding with any work not authorized by the Contracting Officer will be at the Contractor's own risk.

Section B - Supplies or Services and Prices

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0001	Snyder's Run Boat Launch (2 Acres) FFP The contractor shall provide all management, supervision, labor, boats, transportation, equipment, supplies, materials, and quality control necessary to apply herbicidal materials to targeted aquatic vegetation at the Raystown Lake Project, Baltimore District, U.S. Army Corps of Engineers in accordance with the specifications contained in the Performance Work Statement dated 04 February 2025. Please note that 78 lbs. of product will be for the job of the 2 Acres of this CLIN. FOB: Destination PSC CD: S208	78	Job		

NET AMT

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0002	USACE Boat Dock (0.5 Acres) FFP The contractor shall provide all management, supervision, labor, boats, transportation, equipment, supplies, materials, and quality control necessary to apply herbicidal materials to targeted aquatic vegetation at the Raystown Lake Project, Baltimore District, U.S. Army Corps of Engineers in accordance with the specifications contained in the Performance Work Statement dated 04 February 2025. Please note that 22.5 lbs. of product will be for the job of the .5 Acres of this CLIN. FOB: Destination PSC CD: S208	22.50	Job		

NET AMT

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0003	Seven Points Boat Launch (6 Acres) FFP The contractor shall provide all management, supervision, labor, boats, transportation, equipment, supplies, materials, and quality control necessary to apply herbicidal materials to targeted aquatic vegetation at the Raystown Lake Project, Baltimore District, U.S. Army Corps of Engineers in accordance with the specifications contained in the Performance Work Statement dated 04 February 2025. Please note that 195 lbs. of product will be for the job of the 6 Acres of this CLIN. FOB: Destination PSC CD: S208	195	Job		
NET AMT					

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0004	Oak Peninsula (5 Acres) FFP The contractor shall provide all management, supervision, labor, boats, transportation, equipment, supplies, materials, and quality control necessary to apply herbicidal materials to targeted aquatic vegetation at the Raystown Lake Project, Baltimore District, U.S. Army Corps of Engineers in accordance with the specifications contained in the Performance Work Statement dated 04 February 2025. Please note that 195 lbs. of product will be for the job of the 5 Acres of this CLIN. FOB: Destination PSC CD: S208	195	Job		
NET AMT					

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0005	Point Inlet (5.5 Acres) FFP The contractor shall provide all management, supervision, labor, boats, transportation, equipment, supplies, materials, and quality control necessary to apply herbicidal materials to targeted aquatic vegetation at the Raystown Lake Project, Baltimore District, U.S. Army Corps of Engineers in accordance with the specifications contained in the Performance Work Statement dated 04 February 2025. Please note that 160.5 lbs. of product will be for the job of the 5.5 Acres of this CLIN. FOB: Destination PSC CD: S208	160.50	Job		
NET AMT					

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0006	Raystown Resort (6.5 Acres) FFP The contractor shall provide all management, supervision, labor, boats, transportation, equipment, supplies, materials, and quality control necessary to apply herbicidal materials to targeted aquatic vegetation at the Raystown Lake Project, Baltimore District, U.S. Army Corps of Engineers in accordance with the specifications contained in the Performance Work Statement dated 04 February 2025. Please note that 147 lbs. of product will be for the job of the 6.5 Acres of this CLIN. FOB: Destination PSC CD: S208	147	Job		
NET AMT					

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0007	Gate 35 (4.5 Acres) FFP The contractor shall provide all management, supervision, labor, boats, transportation, equipment, supplies, materials, and quality control necessary to apply herbicidal materials to targeted aquatic vegetation at the Raystown Lake Project, Baltimore District, U.S. Army Corps of Engineers in accordance with the specifications contained in the Performance Work Statement dated 04 February 2025. Please note that 132 lbs. of product will be for the job of the 4.5 Acres of this CLIN. FOB: Destination PSC CD: S208	132	Job		
					NET AMT

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0008	Weaver Falls Boat Launch (5 Acres) FFP The contractor shall provide all management, supervision, labor, boats, transportation, equipment, supplies, materials, and quality control necessary to apply herbicidal materials to targeted aquatic vegetation at the Raystown Lake Project, Baltimore District, U.S. Army Corps of Engineers in accordance with the specifications contained in the Performance Work Statement dated 04 February 2025. Please note that 291 lbs. of product will be for the job of the 5 Acres of this CLIN. FOB: Destination PSC CD: S208	291	Job		
					NET AMT

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0009	Juniata College Field Station (4.5 Acres FFP The contractor shall provide all management, supervision, labor, boats, transportation, equipment, supplies, materials, and quality control necessary to apply herbicidal materials to targeted aquatic vegetation at the Raystown Lake Project, Baltimore District, U.S. Army Corps of Engineers in accordance with the specifications contained in the Performance Work Statement dated 04 February 2025. Please note that 102 lbs of product will be for the job of the 4.5 Acres of this CLIN. FOB: Destination PSC CD: S208	102	Job		
NET AMT					

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0010	James Creek Boat Launch (8 Acres) FFP The contractor shall provide all management, supervision, labor, boats, transportation, equipment, supplies, materials, and quality control necessary to apply herbicidal materials to targeted aquatic vegetation at the Raystown Lake Project, Baltimore District, U.S. Army Corps of Engineers in accordance with the specifications contained in the Performance Work Statement dated 04 February 2025. Please note that 241.5 lbs. of product will be for the job of the 8 Acres of this CLIN. FOB: Destination PSC CD: S208	241.50	Job		
NET AMT					

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0011	Aitch (33.5 Acres) FFP The contractor shall provide all management, supervision, labor, boats, transportation, equipment, supplies, materials, and quality control necessary to apply herbicidal materials to targeted aquatic vegetation at the Raystown Lake Project, Baltimore District, U.S. Army Corps of Engineers in accordance with the specifications contained in the Performance Work Statement dated 04 February 2025. Please note that 941 lbs. of product will be for the job of the 33.5 Acres of this CLIN. FOB: Destination PSC CD: S208	941	Job		

NET AMT

04 February 2025

Performance Work Statement

U.S. Army Corps of Engineers Baltimore District Raystown Lake Project Aquatic Plant Control

1.0 Introduction. The U.S. Army Corps of Engineers at Raystown Lake is requesting aquatic plant control services. Contractors shall be capable of providing services on Federal lands. The Contractor shall furnish the required personnel, equipment, instruments, and transportation, as necessary to accomplish aquatic plant control services on the Raystown Lake Project in Huntingdon County, Pennsylvania. The Contractor shall furnish to the Government reports and other data together with supporting material developed. During the execution of the work, the Contractor shall provide adequate professional supervision and quality control to assure the accuracy, quality, completeness, and progress of the work. Generally, the purpose of this contract is for the Contractor to provide and apply aquatic herbicide to manage monoecious *Hydrilla verticillata* at Raystown Lake locations.

2.0 Background. Raystown Lake conducted seven aquatic plant surveys from 2017-2024. It was determined that 25% of the 8,300 surface acres had sparse to dense patches of *Hydrilla verticillata*. The data collected from these surveys determined locations and priority of treatment described in Section 3.1.1.1.

3.0 General Requirements. The Contractor shall provide all management, supervision, labor, boats, transportation, equipment, supplies, materials, and quality control necessary to apply herbicidal materials to targeted aquatic vegetation at the Raystown Lake Project, Baltimore District, U.S. Army Corps of Engineers in accordance with the specifications contained herein. The aquatic plant infestations vary from sparse patches of plants to very dense uniform mats. Approximately 95% of the work may involve the control of *Hydrilla verticillata*. The Contractor must comply with all applicable county, state and Federal laws and regulations; specifically, those related to aquatic herbicide activities. All boats comply with the safety requirements as detailed in the USACE Health and Safety Manual, EM 385-1-1, available at <http://www.usace.army.mil/SafetyandOccupationalHealth/SafetyandHealthRequirementsManual.aspx>.

The Contractor must possess application methods for each boat. Two people are always required on the boat during an aquatic herbicide treatment. The Contractor is required to confirm and provide two minimum 18 ft boats with SONAR and GPS, with the ability to load treatment plots onto unit as well as provide treatment tracks. The Contractor will be paid based upon the areas of successfully treated invasive aquatic vegetation, as identified in section 3.1 and as verified by Government inspectors. Hydrilla beds are expected to be patchy and range from approximately 0 – 10 ft. depths in an approximately 81-acre total area.

The Contractor will not perform aquatic plant control services under any conditions where the task cannot be completed properly to obtain the Government's goal. The Contractor shall minimize non-target and native aquatic plant species. The Contractor shall notify the Government 24 hours in advance of treatment operations. Treatment operations may be suspended temporarily due to weather conditions such as high winds, rain, or anticipated rain. No application will be conducted on Federal Holidays or weekends. Due to the nature of this work, growing seasons, and potential high-water events, exact location of the acres to be treated could vary slightly at time of performance, but the total acreage will be treated regardless of location.

The Contractor and all Contractor employees shall be subject to the rules and regulations provided in Title 36, Code of Federal Regulations, Part 327, during the performance of this contract. Upon request a copy of these provisions can be provided by the Government.

Any work performed outside the scope of this contract must be negotiated in advance. Failure to acquire advance approval will result in the Contractor not being compensated for the work performed outside the scope.

The Contractor may not fill tanks from any Corps body of water or Corps water source without prior inspection and approval of filling hoses, valves (check valves required), and pumps by the Contracting Officer's Representative, Raystown Lake or designated representative.

3.1 Work Task Description. There are eleven (11) treatment areas as defined herein. The Contractor must bid on all line items to be considered for award.

3.1.1 Aquatic Herbicide Treatment.

3.1.1.1 Treatment Timing.

In the Summer of 2025, the contractor will apply SonarOne (active ingredient fluridone), in three consecutive applications during the growing season after the hydrilla tubers have sprouted (estimated to be mid-May) and prior to significant new tuber formation (estimated to be mid-July). These applications will occur 3 weeks from each other, with a more detailed listing of procedures below. Also, SonarOne treatment areas have been identified in the below chart with application rates, and total treatment acreages.

Application timing this treatment will be based on numerous social, logistical, and technical factors. All applications shall be conducted early in the week to avoid any potential use restrictions over a weekend period. Also, no applications will occur over any federal holidays. The Contractor is responsible for determining ideal treatment dates and shall coordinate all treatments with the Government at least 3-business days prior to being conducted. If at any point it appears this target date as described herein cannot be met the Contractor will notify the Government.

3.1.1.2 Treatment Schedule.

The SonarOne treatment application will require (9) weeks. Applications shall occur on three (3) week intervals as follows:

- Conduct Application 1
- Pull water samples two weeks post Application 1
- Conduct Application 2 one week post pulling water samples for Application 1
- Pull water samples two weeks post Application 2
- Conduct Application 3 one week post pulling water samples for Application 2
- Pull water samples two weeks post Application 3
- Provide final report of treatment (all three applications)

The Contractor shall collect fluridone concentration samples 2 weeks after the herbicide application. The Contractor will also send the samples to an independent testing laboratory to determine if the desired concentration of fluridone was reached. One composite sample (combination of at least 3 individual samples collected from inside one treatment area are combined and subsampled) will be collected and tested from each of the 11 treatment areas.

2025 Aquatic Herbicide Treatments using SonarOne					
Item	Location	Acres	Avg Depth (ft.)	Dosage Rate (ppb)	Application Quantity (lbs.)
1	Snyder's Run Boat Launch	2.00	8	30	26
				30	26
				30	26
Total:					78
2	USACE Boat Dock	0.50	6	45	7.5
				45	7.5
				45	7.5
Total:					22.5
3	Seven Points Boat Launch	6.00	8	25	65
				25	65
				25	65
Total:					195
4	Oak Peninsula	5.00	8	30	65
				30	65
				30	65
Total:					195
5	Point Inlet	5.50	6	30	53.5
				30	53.5
				30	53.5
Total:					160.5
6	Raystown Resort	6.50	6	30	63
				20	42
				20	42
Total:					147
7	Gate 35 Inlet	4.50	6	30	44
				30	44
				30	44
Total:					132
8	Weaver Falls Boat Launch	5.00	8	45	97
				45	97
				45	97
Total:					291
9	Juniata College Field Station	4.50	6	30	44
				20	29
				20	29
Total:					102
10		8.00	8	30	103.5

	James Creek Boat Launch			20	69
				20	69
Total:					241.5
2025 Aquatic Herbicide Treatments using SonarOne continued					
Item	Location	Acres	Avg Depth (ft.)	Dosage Rate (ppb)	Application Quantity (lbs.)
11	Aitch	33.50	8	25	362
				25	362
				15	217
Total:					941
TOTAL:					2,505.50

3.1.1.3 Treatment Areas.

The Contractor shall use the aquatic herbicide SonarOne to treat a total of 81 acres. Maps are included in Appendix A.

Treating along banks of waterways, the Contractor shall take care to avoid treating bank vegetation. The Contractor shall perform aquatic herbicide treatments only in the waterway proper, from bank to bank, to ensure an effective and thorough kill of unwanted aquatic species. No application should be performed on the banks of streams, near the bases of trees in or near bank areas. The overall objective is to remove hydrilla biomass to reduce potential for further spread. Reperformance of unacceptable services at no additional cost is the course of action when appropriate.

3.1.1.4 Treatment Requirements. In order to achieve the highest possible eradication level the contractor shall:

- Collect water samples two weeks after each application. One composite sample shall be collected for each treatment location. The Contractor will send these samples to a testing lab to determine the concentration levels of fluridone.
- Contact the Government's QA representative three (3) days in advance of all applications and water sampling.
- Provide a post-treatment assessment that documents field conditions within 24 hours of each application. Assessment conditions will be described on the Post Application Documentation Form (PADF) (Appendix B). This form documents the type and performance of equipment that was used, type of herbicide applied, total pounds of herbicide applied, acres treated, and total hours of treatment time.
- Submit a final report that will document the percentage of kill to the targeted species for each treatment area. Data for the report should not be collected until full effect of the herbicide

is achieved. The report shall also include all lab results of fluridone concentration levels and the PADF's.

3.2 Period of Performance. Services provided under this Contract must occur during designated time periods. The period of performance for this contract shall run from date of award to September 30, 2025. The Contractor may complete work tasks from 6:00AM - 6:00PM, Monday through Friday, excluding holidays, unless prior approval is given by the COR or their representative.

3.3 Compliance. All work conducted under this contract shall be performed in compliance with all applicable county, state, and Federal laws, and regulations.

3.4 Pre-Bid Tour/Pre-Work Conference. A pre-bid tour will be coordinated with Shannon Wray and set for 10:00 am, April 14th, 2025, at the Raystown Lake Visitor Center.

Point of Contact:

Name: Shannon Wray

Title: Natural Resource Specialist

Phone: (814) 658-6812

E-mail: shannon.e.wray@usace.army.mil

The Contractor is required to attend a pre-work conference before the commencement of work. The meeting will be held at Raystown Lake at a time that is mutually agreeable to the Contractor and the Government. The Contractor shall provide the following documents prior to the pre-work conference:

- Accident Prevention Plan (see Section 6.0)
- Pollution Prevention Plan (see Section 6.0)
- Proof of Insurance (see Section 10.0)

4.0 Contractor Provided Materials and Requirements.

4.1 There must be at least one Contractor employee with current applicator certification/license on site during all applications. That employee must possess a current Pennsylvania Commercial Applicators Pesticide License under the appropriate category for which treatment is taking place. Some expected licensing requirements may be Park Pest Control (23), Weed (14), Right of Way (10), Lawn and Turf (07), Ornamental and Shade Trees (06), Aquatic (09). This listing is intended as informational only. State laws covering types of licenses may require different categories other than listed here. A copy of the licenses must be furnished to the COR prior to the commencement of work.

4.2 The Contractor shall furnish the Raystown Office copies of the current herbicide labels and Safety Data Sheets (SDS) prior to the application of each herbicide utilized in the

treatment. The Government reserves the right to review and/or deny the use of any chemical to be applied on the project site.

4.3 The Contractor is responsible for the calibration of their equipment and the application methods to achieve the specified rates of application.

4.4 The Contractor shall coordinate the locations for mixing and preparing herbicides with the COR or their representative. A spill containment system will be properly used during all mixing operations on Government property and will be approved by the COR or their representative. The Contractor shall notify the COR immediately of any non-contained herbicide spill and take appropriate action to mitigate the spill and decontaminate the site.

5.0 Government Provided Materials.

5.1 Keys will be provided to the Contractor by the Government for executing the duties of this contract per Section 7.0.

5.2 GIS/Maps Files. Upon request by the Contractor the Government will provide maps and/or GIS files to include, but not limited to aerial photography, topography, project boundary, project gates, and project roads.

6.0 Safety. The Contractor and Contract employees shall meet all applicable requirements of U.S. Army Corps of Engineers Manual EM 385-1-1 dated 15 March 2024 entitled *Safety and Occupational Health Requirements* (<https://www.usace.army.mil/SafetyandOccupationalHealth/SafetyandHealthRequirementsManual.aspx>), OSHA Regulations, and all State and Local safety codes while in performance of this contract.

6.1 Accident Prevention Plan. The Contractor shall develop and submit a written detailed accident prevention plan. This plan must indicate in detail the general policies and procedures for safe operation in the accomplishment of this contract. A cover letter identifying the Contractor or Company name, address, phone number, email (if applicable), contract number and current year will accompany the plan. The plan will show how the Contractor intends to perform all services in full compliance with the safety requirements set forth in EM 385-1-1, Appendix A. A signed letter of certification which references the contract and current year and states if the original plan remains current (or lists changes if applicable) is acceptable following the base year pre-work conference. **All plans, or subsequent revisions, must be acceptable to the government BEFORE work commences.** An example Accident Prevention Plan outline and checklist of requirements is included as Appendix C.

6.2 Pollution Prevention Plan. The Contractor shall prepare a Pollution Prevention Plan for the Government's approval prior to the application of aquatic herbicide. This plan shall cover the storage, transfer, transport, and application of hazardous chemicals

(herbicides, fuel, etc.). The plan shall address spill prevention and cleanup at a minimum.

6.3 Safety Officer. The Contractor shall designate a Contractor Employee to be responsible for overall supervision of accident prevention activities. Such duties will include assuring applicable safety requirements are incorporated in work methods and inspecting the work to ensure that safety measures are in action.

6.4 Reporting. The Contractor shall maintain an accurate record of, and report to the COR exposure data. All accidents resulting in death, traumatic injury, occupational disease, and damage to property, materials, supplies and equipment incident to work performed under this contract will be documented. All accidents shall be reported within 24 hours of the occurrence. All accidents resulting in death or injury requiring medical attention shall be reported immediately.

6.5 Safety Equipment. The Contractor shall observe all speed limits and other posted traffic signs in the operation of vehicles and equipment. Trucks or other vehicles will be operated in a safe manner and will not be parked in unsafe positions. Safety Equipment: each boat, shall contain all safety equipment required by the US Coast Guard Auxiliary for the size of the boat and the number of persons and equipment aboard. The US Coast Guard Auxiliary requirements are more stringent than those of the US Coast Guard. A summary of the USCG and USCGA requirements is listed in Chapman's Piloting, Seamanship, and Small Boat Handling, which volume is not incorporated into the specifications. Also refer to the applicable provisions Of the US Army Corps of Engineers Safety and Health Requirements Manual, EM 385-1-1. The Contractors shall wear a USCG approved and serviceable lifejacket during application. Wearable and throwable personal flotation devices shall have covers which are impervious to the chemicals being applied, or shall have removable, washable covers. All safety equipment required for placement of the herbicides, as specified on the herbicide label, shall also be used. In the event of a conflict between any of the various safety references above, the most stringent requirements shall be followed.

7.0 Security. The Contractor and Contractor employees will ensure all gates and other areas will be secured, in the way they were encountered, upon vacating the area.

7.1 Keys. If deemed necessary, keys will be provided to the Contractor to access areas exclusively for the performance of this contract. The keys shall be returned to Government after all work tasks have been completed. If keys are not returned to the Government \$300 will be deducted from the Contractor's final invoice.

7.2 Restrictions. Any use of Government keys other than for the performance of this contract is strictly prohibited. Making or being in the possession of duplicate keys is prohibited. Misuse of keys is grounds for dismissal of Contract Employees or termination of the contract.

7.3 Loss. Any loss of keys will be reported to the Government within 24 hours. Any loss of the keys will be addressed in section 7.1 of this contract.

7.4 Access and General Protection/Security Policy and Procedures. All Contractor and associated sub-contractor employees shall comply with applicable installation, facility and area commander installation/facility access and local security policies and procedures (provided by government representative). The Contractor shall also provide all information required for background checks or background investigation and to meet installation/facility access requirements to be accomplished by installation Provost Marshal Office, Director of Emergency Services, or Security Office. Contractor workforce shall comply with all personal identity verification requirements as directed by DOD/HQDA and/or local policy. In addition to the changes otherwise authorized by the changes clause of this contract, should the Force Protection Condition (FPCON) at any installation or facility change, the Government may require changes in contractor security matters or processes.

7.5 Suspicious Activity Reporting Training. (e.g. [iWATCH](#), [CorpsWatch](#), or [See Something, Say Something](#)). The Contractor shall receive a brief/training (provided by the COR) on the local suspicious activity reporting program. This locally developed training will be used to inform employees of the types of behavior to watch for and instruct employees to report suspicious activity to the Project manager or his/her authorized representative. This training shall be completed within 30 calendar days of contract award and within 30 calendar days of new employees commencing performance with the results reported to the COR NLT 5 calendar days after the completion of the training.

7.6 Escorts. The Contractor shall coordinate with the COR and/or the facility security office for access when required. All Contractor employees who are not in possession of the appropriate security clearance or access privileges, will be escorted in areas where they may be exposed to classified and/or sensitive materials and/or sensitive or restricted areas.

7.7 Pre-screen candidates using E-Verify Program. The Contractor must pre-screen Candidates using the E-verify Program (<http://www.uscis.gov/e-verify>) website to meet the established employment eligibility requirements. The Vendor must ensure that the Candidate has two valid forms of Government issued identification prior to enrollment to ensure the correct information is entered into the E-verify system. An initial list of verified/eligible Candidates must be provided to the COR no later than 3 (three) business days after the initial contract award.

8.0 Personnel.

8.1 Contractor Personnel. A list of all employees required to satisfactorily perform the requirements of this contract shall be furnished by the Contractor. The Contractor shall provide adequate supervision of his/her employees to ensure compliance with contract specifications.

8.2 Requirements. All Contract Employees must meet the following requirements prior to starting and during the performance of this Contract.

- **U.S. CITIZEN:** Contract Employees must be citizens of the United States of America, be an alien under lawful admittance for permanent residence as evidenced by an Alien Registration Receipt Card (Form 1-151), or be able to present other INS evidence that employment will not affect his/her immigration status.
- **AGE:** Contract Employees must be at least 18 years of age.
- **DRIVERS LICENSE:** Contract Employees must possess a current driver's license valid in the Commonwealth of Pennsylvania.
- **GENERAL:** Contract Employees must be in good health. The Contractor shall insure on-site representative(s) ability to communicate in the English language.

8.3 Misconduct. The Government reserves the right to dismiss Contract Employees or terminate the contract for failure (single or repetitive) to meet any of the requirements and standards contained herein; or which causes discredit to the Government or Contractor, as determined by the COR.

8.4 Behavior. The Contractor and their employees will hold themselves to the standard of acceptable behavior expected of the public and to all rules and regulations for Government property and facilities, while on project lands and/or in performance of Contract duties. The COR reserves the right to deem any behavior not addressed herein as unacceptable.

8.5 Drugs and Alcohol. The Contractor and their employees shall not use or be under the influence of drugs or alcohol at any time while in the performance of the contract.

8.6 Government Personnel. Government Employees may be near the Contractor's designated area of work. The Contractor shall cooperate fully with all Government Employees and shall not impede the work of others in any way.

9.0 Quality Assurance. The Government Quality Assurance Surveillance Plan (QASP) is subject to change during the life of this contract and the Contractor will be made aware of any changes. The quality assurance plan referenced below is included for information purposes only.

9.1 Inspections.

The Government will inspect the Contractor's services to assure the requirements of the contract are provided as specified, with deficiencies brought to the attention of the Contractor. The Government has the right to inspect and test all services called for by the contract, to the extent practicable always and places during the term of the contract. The Government will perform inspections and tests in a manner that will not unduly delay the work.

9.2 Re-Inspection.

Should it become necessary for the QA to perform re-inspections of defective work that was required to be redone and was not performed (due to failure of the Quality Control

system), the government may withhold payment for the service that was not performed and document the Contractor's performance as unsatisfactory.

9.3 Methods.

The Government will monitor the Contractor's services using the planned sampling method. The frequency of inspection will vary from not less than 25% of the work accomplished to 100%.

10.0 Insurance Requirements.

10.1 Required Insurance.

Contractor shall provide insurance pursuant to the contract clause entitled, 52.228-5, Insurance – Work on a Government Installation. The Contractor shall procure and maintain the required insurance during the entire period of performance under the contract, following minimum insurance:

<u>Type</u>	<u>Amount</u>
Comprehensive General Liability Bodily injury or death	\$500,000 per occurrence
Motor Vehicle Liability (for each motor vehicle): Bodily injury or death	\$200,000 per person \$500,000 per occurrence
Property Damage:	\$20,000 per occurrence
Workers' Compensation and Employer's Liability:	\$100,000 per person

10.2 Documentation.

Prior to the commencement of work, the Contractor shall furnish to the COR a current certificate or written statement of insurance requirements of the contract. Policies evidencing required insurance shall contain an endorsement to the effect that cancellation or any material change in policies adversely affecting the interests of the Government in such insurance shall not be effective for such period as may be prescribed by the Laws of the State in which this contract is to be performed and in no event less than thirty (30) days after written notice thereof to the Contracting Officer. Additionally, said policies shall list the Government as additionally insured.

11.0 Inspections, Deductions, and Default.

11.1 Inspections.

All work shall be performed in an orderly fashion consistent with the specifications as outlined in this PWS. During the execution of the contract the COR or their representative will conduct inspections of all aquatic herbicide treatments to determine applicable performance requirements, as outlined in Sections 3 and 9, are being met. The Contractor will provide a letter stating that all work tasks have been completed in accordance with the contract requirements. Once the COR receives this letter a final inspection of work be documented, and an evaluation of timeliness and efficiency will be performed at this time.

11.2 Deficiencies.

If any of the services, in any measure, do not conform with contract requirements the Government may require the Contractor to perform the services again in conformity with contract requirements, at no increase in contract amount. When defects in services cannot be corrected by re-performance, the Government may require the Contractor to take necessary action to ensure that future performance conforms to contract requirements, at no increase in contract amount.

11.3 Deductions.

If the Contractor fails to correct defects by re-performance and/or take the necessary action to ensure future performance in conformity with contract requirements in a timely fashion the Government may, by contract or otherwise, perform the services and charge to the Contractor any cost incurred by the Government that is directly related to the performance of such service. These charges will be deducted from the Contractor's next invoice (FAR52.246-4). The Contractor shall be provided an itemized breakdown of each deduction made.

11.3.1 The Contractor shall be responsible for repairing or replacing damaged property to the satisfaction of the OPM due to Contractor negligence. Repairs or replacement of damaged property must be made within seven days or less of the incident. The Government will make all necessary repairs or replacement of damaged property and all costs associated with said repairs or replacement will be deducted from the next invoice received from the Contractor.

11.3.2 Default of the contract shall be considered for various reasons relating to nonperformance of the contractual specifications. Following is a partial listing of reasons for which default may be considered:

- Repetitive failure to adhere to contract specifications
- Repetitive deductions for non-performance
- Repetitive safety violations
- Repeated abuse of key privileges
- Excessive cases of damage to Government or private property
- Excessive cases of substantiated public complaint

12.0 Invoices and Payment.

12.1 Invoices.

The Contractor shall submit itemized invoices after the completion of each application or after completion of the entire aquatic herbicide treatment. Invoices shall accurately reflect work completed. Each invoice, at a minimum, shall contain the following information:

- Contractor name and address (exactly as it appears on the contract)
- Contract number and call number
- Date of invoice submission
- Invoice number

- Invoice total

12.2 Final Report.

A final report (Section 3.1.1.2) that documents the percentage of kill to the targeted areas, the lab test results of fluridone concentration levels and the PADF forms must be submitted with the final invoice.

12.3 Corrections.

Incorrect invoices will be returned to the Contractor for correction before processing payment. Corrected invoices shall be re-dated to reflect the new submission date

12.4 Remittance.

Invoices shall be submitted via post-mail and/or electronic mail to the following addresses for payment. Should changes occur to the mailing addresses the Contractor shall be notified.

VIA Post Mail: ATTN: Shannon Wray
U.S. Army Corps of Engineers
Raystown Lake Project
6145 Seven Points Road
Hesston, PA 16647

VIA Electronic Mail: To: shannon.e.wray@usace.army.mil
Cc: wendi.j.hunsicker@usace.army.mil

END SCOPE OF WORK

Technical Exhibit 1 - Performance Requirements Summary

The contractor service requirements are summarized into performance objectives that relate directly to mission essential items. The performance threshold briefly describes the minimum acceptable levels of service required for each requirement. These thresholds are critical to mission success.

Performance Objective			
<i>The contractor shall furnish all labor, materials, and equipment necessary to perform aquatic plant control services on the Raystown Lake Project in Huntingdon County, Pennsylvania in accordance with the specifications contained herein.</i>	Standard	Performance Threshold	Method of Surveillance

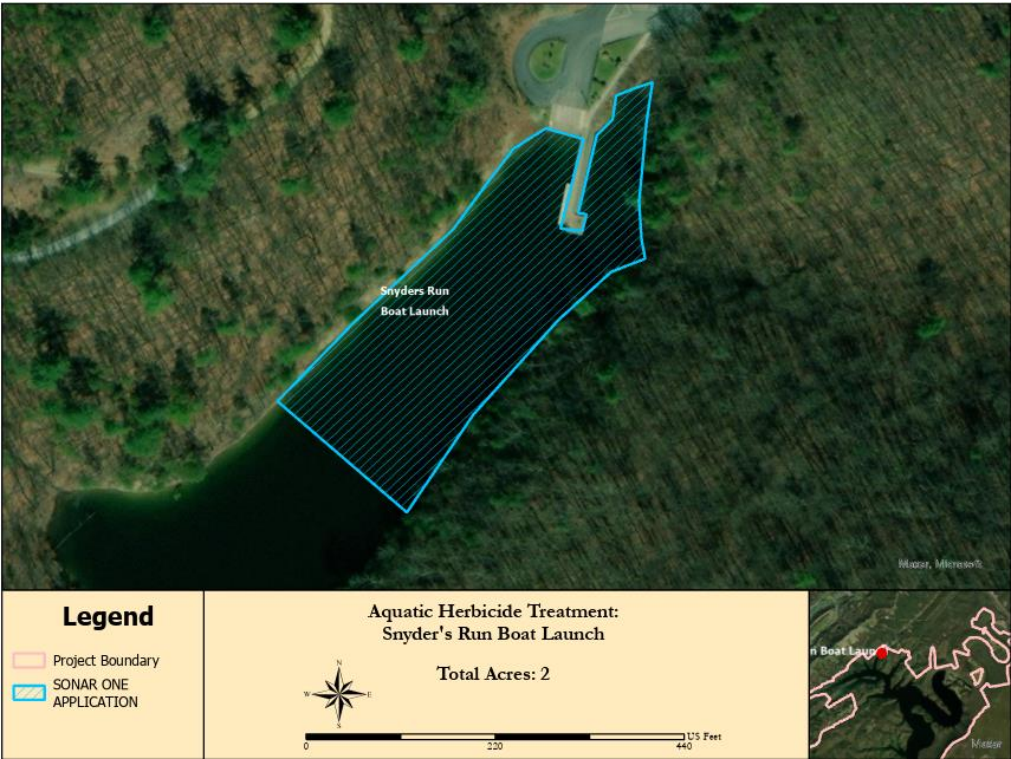
PRS # 1. The contractor shall provide an Accident Prevention Plan, Pollution Prevention Plan, and post treatment plan.	The contractor shall follow the standard established in EM 385-1-1.	Submission shall be within 14 days from the award date and any discrepancies shall be corrected within 3 business days, with no work being accomplished until the Plan is in accordance with EM 385-1-1.	The Government will perform a 100% review of the Accident Prevention Plan, including review by USACE Safety Officer, to ensure it meets the requirements set forth in EM 385-1-1. (100% Inspection)
PRS#2 The Contractor shall comply with all safety requirements set forth in the Accident Prevention Plan, and Pollution Prevention Plan.	The contractor shall follow the standard established in PWS Section 6.	The maximum safety violations documented are no more than 5 violations.	The Government will document safety violations.
PRS #3 The Contractor shall procure and maintain insurance.	The contractor shall follow the standard established in PWS Section 10.0.	The minimum acceptable level of performance is insurance certificate meeting all the requirements set forth in PWS Section 10.0. Must be submitted 14 days from the award date.	The Government will perform a 100% review of insurance to ensure it meets the requirements set forth in PWS Section 10.0 (100% Inspection).
PRS #4 The Contractor shall not fail to adhere to contract specifications.	The contractor shall follow the standard established in PWS Sections 3.0 and 9.0.	The maximum documented failure to re-perform is 5 times.	The Government will document request corrective actions for failure of specifications and withhold payment for non-performance and document unsatisfactory performance.
PRS#5 The Contractor shall not damage Government or private property.	The contractor shall follow the standard established in PWS Section 7.0.	The maximum documented damages to Government or private property is no more than 3 times (exceeding \$1,000 thresholds).	The Government will document damages to Government or private property.

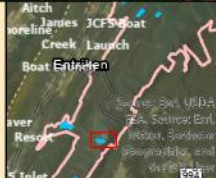
PRS #6 The Contractor shall not abuse key privileges.	The contractor shall follow the standard established in PWS Section 7.0.	The contractor shall not duplicate & loan keys on one occasion or lose keys on more than 2 occasions.	The Government will document findings and report abused key privileges.
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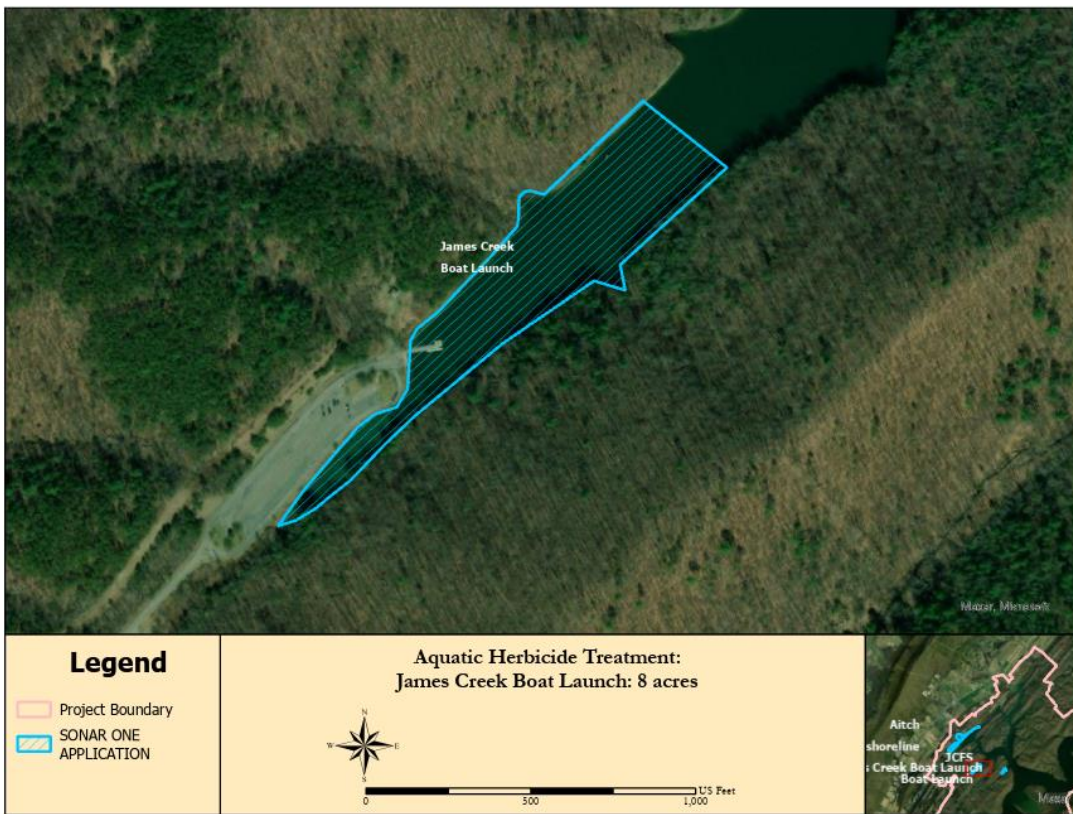
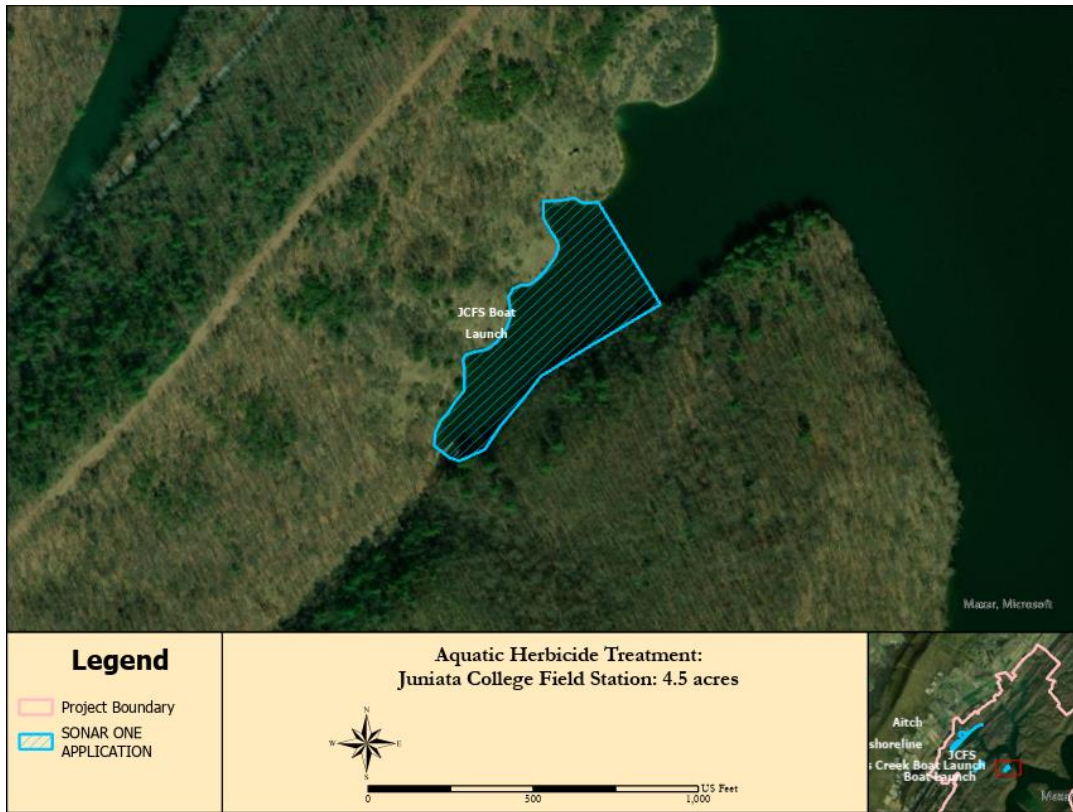
Technical Exhibit 2-Deliverables

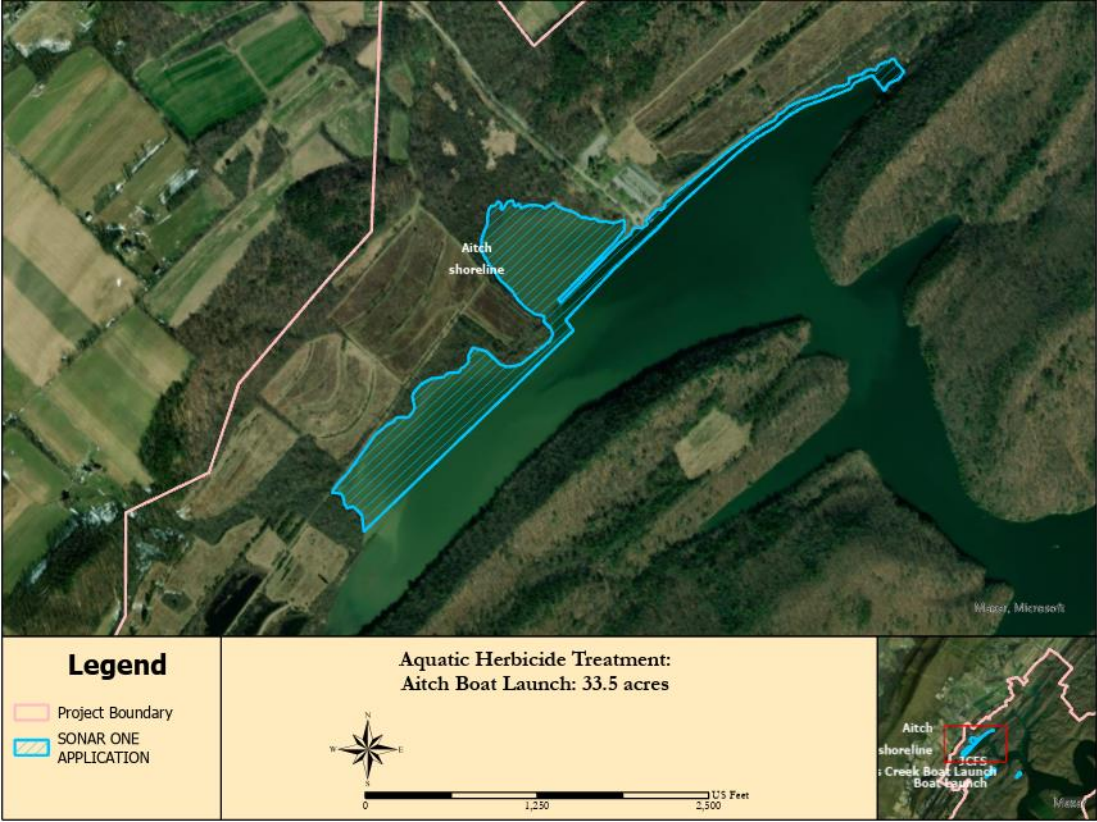
Deliverables	Frequency	# of Copies	Medium/Format Please submit email copy of all deliverables to the COR & KO (Microsoft Office version 2010 or newer).	Submit To
Accident Prevention Plan	Within 14 days of contract award.	1	Email	ATTENTION: Shannon Wray shannon.e.wray@usace.army.mil
Insurance	Within 14 days of contract award.	1	Email	ATTENTION: Shannon Wray shannon.e.wray@usace.army.mil
Suspicious Activity Reporting Training	Within 14 days of contract award.	1	Email	ATTENTION: Shannon Wray shannon.e.wray@usace.army.mil
Pre-Screen Candidates-E-Verify Program	Within 14 days after contract award.	1	Email	ATTENTION: Shannon Wray shannon.e.wray@usace.army.mil
Employee List, Pesticide Applicator License, Safety Data Sheets (SDS), and Chemical Label	Prior to application.	1	Email	ATTENTION: Shannon Wray shannon.e.wray@usace.army.mil
Post Application Documentation Form	With Invoice	1	Email	ATTENTION: Shannon Wray shannon.e.wray@usace.army.mil
Final Report showing percent of kill and lab results of fluridone concentration levels	With Invoice	1	Email	ATTENTION: Shannon Wray shannon.e.wray@usace.army.mil

APPENDIX A: AQUATIC PLANT CONTROL APPLICATION MAPS.









APPENDIX B: POST APPLICATION DOCUMENTATION FORM.

Post-Application Documentation Form U.S. Army Corps of Engineers Pest Control Program

Project:		Raystown Lake 6145 Seven Points Road Hesston, PA 16647 (814) 658-3405		District: NAB		
1	Contractor	_____		Applicator	_____	
	Address	_____		Address	_____	
	City, St. Zip	_____		City, St. Zip	_____	
	Phone	_____		Phone	_____	
2	Target Plant _____					
3	Date of Application	Time of Day	Air Temp	Relative Humidity	Cloud Cover	Wind Speed and Direction
	_____	____ : ____	_____	_____	_____	_____
4	Description of Area Treated: _____					
	_____ _____					
5	Name of Pesticide Used: _____					
	EPA Registration: _____		EPA Classification: _____			
	Active Ingredients (% on label): _____					

	Application Method: _____					
	Application Rate: _____					
	Acreage Treated: _____		Amount of Solution Applied: _____			
	Amount of Each Chemical Applied: _____					
	Mixture Rates for each Chemical: _____					

Application Equipment Used: _____						
6	Method of Disposal: _____					
	Disposal Location: _____					
	Additional Remarks: _____					

Section E - Inspection and Acceptance

INSPECTION AND ACCEPTANCE TERMS

Supplies/services will be inspected/accepted at:

CLIN	INSPECT AT	INSPECT BY	ACCEPT AT	ACCEPT BY
0001	Destination	Government	Destination	Government
0002	Destination	Government	Destination	Government
0003	Destination	Government	Destination	Government
0004	Destination	Government	Destination	Government
0005	Destination	Government	Destination	Government
0006	Destination	Government	Destination	Government
0007	Destination	Government	Destination	Government
0008	Destination	Government	Destination	Government
0009	Destination	Government	Destination	Government
0010	Destination	Government	Destination	Government
0011	Destination	Government	Destination	Government

Section F - Deliveries or Performance

DELIVERY INFORMATION

CLIN	DELIVERY DATE	QUANTITY	SHIP TO ADDRESS	DODAAC / CAGE
0001	30-SEP-2025	78	N/A FOB: Destination	
0002	30-SEP-2025	22.50	N/A FOB: Destination	
0003	30-SEP-2025	195	N/A FOB: Destination	
0004	30-SEP-2025	195	N/A FOB: Destination	
0005	30-SEP-2025	160.50	N/A FOB: Destination	
0006	30-SEP-2025	147	N/A FOB: Destination	
0007	30-SEP-2025	132	N/A FOB: Destination	
0008	30-SEP-2025	291	N/A FOB: Destination	
0009	30-SEP-2025	102	N/A FOB: Destination	
0010	30-SEP-2025	241.50	N/A FOB: Destination	
0011	30-SEP-2025	941	N/A FOB: Destination	

Section I - Contract Clauses

CLAUSES INCORPORATED BY REFERENCE

52.203-15	Whistleblower Protections Under the American Recovery and Reinvestment Act of 2009	JUN 2010
52.203-19	Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements	JAN 2017
52.204-2	Security Requirements	MAR 2021
52.204-9	Personal Identity Verification of Contractor Personnel	JAN 2011
52.204-10	Reporting Executive Compensation and First-Tier Subcontract Awards	JUN 2020
52.204-12	Unique Entity Identifier Maintenance	OCT 2016
52.204-13	System for Award Management Maintenance	OCT 2018
52.204-16	Commercial and Government Entity Code Reporting	AUG 2020
52.204-18	Commercial and Government Entity Code Maintenance	AUG 2020
52.204-19	Incorporation by Reference of Representations and Certifications.	DEC 2014
52.204-21	Basic Safeguarding of Covered Contractor Information Systems	NOV 2021
52.204-23	Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities	DEC 2023
52.204-25	Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment	NOV 2021
52.204-27	Prohibition on a ByteDance Covered Application	JUN 2023
52.204-28	Federal Acquisition Supply Chain Security Act Orders--Federal Supply Schedules, Governmentwide Acquisition Contracts, and Multi-Agency Contracts.	DEC 2023
52.209-1	Qualification Requirements	FEB 1995
52.209-9	Updates of Publicly Available Information Regarding Responsibility Matters	OCT 2018
52.209-10	Prohibition on Contracting With Inverted Domestic Corporations	NOV 2015
52.209-14	Reserve Officer Training Corps and Military Recruiting on Campus	NOV 2021
52.211-8	Time of Delivery	JUN 1997
52.212-4	Contract Terms and Conditions--Commercial Products and Commercial Services	NOV 2023
52.212-5	Contract Terms and Conditions Required to Implement Statutes or Executive Orders--Commercial Products and Commercial Services	JAN 2025
52.216-23	Execution And Commencement Of Work	APR 1984
52.216-25	Contract Definitization	OCT 2010
52.216-30	Time-and-Materials/Labor-Hour Proposal Requirements--Other Than Commercial Acquisition Without Adequate Price Competition	NOV 2021
52.219-6	Notice Of Total Small Business Set-Aside	NOV 2020
52.219-27	Notice of Set-Aside for, or Sole-Source Award to, Service-Disabled Veteran-Owned Small Business (SDVOSB) Concerns Eligible Under the SDVOSB Program	FEB 2024
52.222-3	Convict Labor	JUN 2003
52.222-21	Prohibition Of Segregated Facilities	APR 2015
52.222-26	Equal Opportunity	SEP 2016
52.222-35	Equal Opportunity for Veterans	JUN 2020

52.222-36	Equal Opportunity for Workers with Disabilities	JUN 2020
52.222-41	Service Contract Labor Standards	AUG 2018
52.222-42	Statement Of Equivalent Rates For Federal Hires	MAY 2014
52.222-43	Fair Labor Standards Act And Service Contract Labor Standards - Price Adjustment (Multiple Year And Option Contracts)	AUG 2018
52.222-50	Combating Trafficking in Persons	NOV 2021
52.222-54	Employment Eligibility Verification	JAN 2025
52.222-62	Paid Sick Leave Under Executive Order 13706	JAN 2022
52.223-2	Reporting of Biobased Products Under Service and Construction Contracts.	MAY 2024
52.223-3	Hazardous Material Identification And Material Safety Data	FEB 2021
52.223-5	Pollution Prevention and Right-to-Know Information	MAY 2024
52.223-11	Ozone-Depleting Substances and High Global Warming Potential Hydrofluorocarbons.	MAY 2024
52.223-19	Compliance with Environmental Management Systems	MAY 2011
52.223-23	Sustainable Products and Services.	MAY 2024
52.224-1	Privacy Act Notification	APR 1984
52.224-2	Privacy Act	APR 1984
52.224-3	Privacy Training	JAN 2017
52.225-1	Buy American--Supplies	OCT 2022
52.225-13	Restrictions on Certain Foreign Purchases	FEB 2021
52.226-7	Drug-Free Workplace	MAY 2024
52.226-8	Encouraging Contractor Policies to Ban Text Messaging While Driving (MAY 2024)	JUN 2024
52.228-5	Insurance - Work On A Government Installation	JAN 1997
52.229-3	Federal, State And Local Taxes	FEB 2013
52.232-1	Payments	APR 1984
52.232-8	Discounts For Prompt Payment	FEB 2002
52.232-11	Extras	APR 1984
52.232-18	Availability Of Funds	APR 1984
52.232-25	Prompt Payment	JAN 2017
52.232-33	Payment by Electronic Funds Transfer--System for Award Management	OCT 2018
52.232-36	Payment by Third Party	MAY 2014
52.232-38	Submission of Electronic Funds Transfer Information with Offer	JUL 2013
52.232-40	Providing Accelerated Payments to Small Business Subcontractors	MAR 2023
52.233-1	Disputes	MAY 2014
52.233-3	Protest After Award	AUG 1996
52.239-1	Privacy or Security Safeguards	AUG 1996
52.240-1	Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act--Covered Foreign Entities	NOV 2024
52.242-13	Bankruptcy	JUL 1995
52.245-1	Government Property	SEP 2021
52.245-9	Use And Charges	APR 2012
52.246-20	Warranty Of Services	MAY 2001
52.252-2	Clauses Incorporated By Reference	FEB 1998
52.252-3	Alterations in Solicitation	APR 1984
52.252-4	Alterations in Contract	APR 1984
252.201-7000	Contracting Officer's Representative	DEC 1991
252.203-7000	Requirements Relating to Compensation of Former DoD Officials	SEP 2011

252.203-7001	Prohibition On Persons Convicted of Fraud or Other Defense- Contract-Related Felonies	JAN 2023
252.203-7002	Requirement to Inform Employees of Whistleblower Rights	DEC 2022
252.203-7004	Display of Hotline Posters	JAN 2023
252.204-7003	Control Of Government Personnel Work Product	APR 1992
252.204-7004	Antiterrorism Awareness Training for Contractors	JAN 2023
252.204-7006	Billing Instructions--Cost Vouchers	MAY 2023
252.204-7009	Limitations on the Use or Disclosure of Third-Party Contractor Reported Cyber Incident Information	JAN 2023
252.211-7003	Item Unique Identification and Valuation	JAN 2023
252.232-7003	Electronic Submission of Payment Requests and Receiving Reports	DEC 2018
252.232-7010	Levies on Contract Payments	DEC 2006

CLAUSES INCORPORATED BY FULL TEXT

52.204-1 APPROVAL OF CONTRACT (DEC 1989)

This contract is subject to the written approval of Contracting Officer and shall not be binding until so approved.

(End of clause)

Section K - Representations, Certifications and Other Statements of Offerors

CLAUSES INCORPORATED BY REFERENCE

52.211-16

Variation In Quantity

APR 1984

CLAUSES INCORPORATED BY FULL TEXT

52.204-3 TAXPAYER IDENTIFICATION (OCT 1998)

(a) Definitions.

Common parent, as used in this provision, means that corporate entity that owns or controls an affiliated group of corporations that files its Federal income tax returns on a consolidated basis, and of which the offeror is a member.

Taxpayer Identification Number (TIN), as used in this provision, means the number required by the Internal Revenue Service (IRS) to be used by the offeror in reporting income tax and other returns. The TIN may be either a Social Security Number or an Employer Identification Number.

(b) All offerors must submit the information required in paragraphs (d) through (f) of this provision to comply with debt collection requirements of 31 U.S.C. 7701(c) and 3325(d), reporting requirements of 26 U.S.C. 6041, 6041A, and 6050M, and implementing regulations issued by the IRS. If the resulting contract is subject to the payment reporting requirements described in Federal Acquisition Regulation (FAR) 4.904, the failure or refusal by the offeror to furnish the information may result in a 31 percent reduction of payments otherwise due under the contract.

(c) The TIN may be used by the Government to collect and report on any delinquent amounts arising out of the offeror's relationship with the Government (31 U.S.C. 7701(c)(3)). If the resulting contract is subject to the payment reporting requirements described in FAR 4.904, the TIN provided hereunder may be matched with IRS records to verify the accuracy of the offeror's TIN.

(d) Taxpayer Identification Number (TIN).

___ TIN:-----

___ TIN has been applied for.

___ TIN is not required because:

___ Offeror is a nonresident alien, foreign corporation, or foreign partnership that does not have income effectively connected with the conduct of a trade or business in the United States and does not have an office or place of business or a fiscal paying agent in the United States;

___ Offeror is an agency or instrumentality of a foreign government;

___ Offeror is an agency or instrumentality of the Federal Government.

(e) Type of organization.

___ Sole proprietorship;

___ Partnership;

___ Corporate entity (not tax-exempt);

- ☐ Corporate entity (tax-exempt);
- ☐ Government entity (Federal, State, or local);
- ☐ Foreign government;
- ☐ International organization per 26 CFR 1.6049-4;
- ☐ Other-----

(f) Common parent.

☐ Offeror is not owned or controlled by a common parent as defined in paragraph (a) of this provision.

☐ Name and TIN of common parent:

Name-----

TIN-----

(End of provision)

52.204-8 ANNUAL REPRESENTATIONS AND CERTIFICATIONS (JAN 2025)

(a)(1) The North American Industry Classification System (NAICS) code for this acquisition is 561730.

(2) The small business size standard is \$9,500,000.

(3) The small business size standard for a concern that submits an offer, other than on a construction or service acquisition, but proposes to furnish an end item that it did not itself manufacture, process, or produce is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519, if the acquisition--

(i) Is set aside for small business and has a value above the simplified acquisition threshold;

(ii) Uses the HUBZone price evaluation preference regardless of dollar value, unless the offeror waives the price evaluation preference; or

(iii) Is an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(b)(1) If the provision at 52.204-7, System for Award Management, is included in this solicitation, paragraph (d) of this provision applies.

(2) If the provision at 52.204-7, System for Award Management, is not included in this solicitation, and the Offeror has an active registration in the System for Award Management (SAM), the Offeror may choose to use paragraph (d) of this provision instead of completing the corresponding individual representations and certifications in the solicitation. The Offeror shall indicate which option applies by checking one of the following boxes:

[] Paragraph (d) applies.

[] Paragraph (d) does not apply and the offeror has completed the individual representations and certifications in the solicitation.

(c) (1) The following representations or certifications in SAM are applicable to this solicitation as indicated:

(i) 52.203-2, Certificate of Independent Price Determination. This provision applies to solicitations when a firm-fixed-price contract or fixed-price contract with economic price adjustment is contemplated, unless—

(A) The acquisition is to be made under the simplified acquisition procedures in Part 13;

(B) The solicitation is a request for technical proposals under two-step sealed bidding procedures; or

(C) The solicitation is for utility services for which rates are set by law or regulation.

(ii) 52.203-11, Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions. This provision applies to solicitations expected to exceed \$150,000.

(iii) 52.203-18, Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements--Representation. This provision applies to all solicitations.

(iv) 52.204-3, Taxpayer Identification. This provision applies to solicitations that do not include the provision at 52.204-7, System for Award Management.

(v) 52.204-5, Women-Owned Business (Other Than Small Business). This provision applies to solicitations that—

(A) Are not set aside for small business concerns;

(B) Exceed the simplified acquisition threshold; and

(C) Are for contracts that will be performed in the United States or its outlying areas.

(vi) 52.204-26, Covered Telecommunications Equipment or Services--Representation. This provision applies to all solicitations.

(vii) 52.209-2, Prohibition on Contracting with Inverted Domestic Corporations--Representation.

(viii) 52.209-5, Certification Regarding Responsibility Matters. This provision applies to solicitations where the contract value is expected to exceed the simplified acquisition threshold.

(ix) 52.209-11, Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law. This provision applies to all solicitations.

(x) 52.214-14, Place of Performance--Sealed Bidding. This provision applies to invitations for bids except those in which the place of performance is specified by the Government.

(xi) 52.215-6, Place of Performance. This provision applies to solicitations unless the place of performance is specified by the Government.

(xii) 52.219-1, Small Business Program Representations (Basic, Alternates I, and II). This provision applies to solicitations when the contract is for supplies to be delivered or services to be performed in the United States or its outlying areas, or when the contracting officer has applied part 19 in accordance with 19.000(b)(1)(ii).

(A) The basic provision applies when the solicitations are issued by other than DoD, NASA, and the Coast Guard.

(B) The provision with its Alternate I applies to solicitations issued by DoD, NASA, or the Coast Guard.

(C) The provision with its Alternate II applies to solicitations that will result in a multiple-award contract with more than one NAICS code assigned.

(xiii) 52.219-2, Equal Low Bids. This provision applies to solicitations when contracting by sealed bidding and the contract is for supplies to be delivered or services to be performed in the United States or its outlying areas, or when the contracting officer has applied part 19 in accordance with 19.000(b)(1)(ii).

(xiv) 52.222-22, Previous Contracts and Compliance Reports. This provision applies to solicitations that include the clause at 52.222-26, Equal Opportunity.

(xv) 52.222-25, Affirmative Action Compliance. This provision applies to solicitations, other than those for construction, when the solicitation includes the clause at 52.222-26, Equal Opportunity.

(xvi) 52.222-38, Compliance with Veterans' Employment Reporting Requirements. This provision applies to solicitations when it is anticipated the contract award will exceed the simplified acquisition threshold and the contract is not for acquisition of commercial products or commercial services.

(xvii) 52.223-1, Biobased Product Certification. This provision applies to solicitations that require the delivery or specify the use of biobased products in USDA-designated product categories; or include the clause at 52.223-2, Reporting of Biobased Products Under Service and Construction Contracts.

(xviii) 52.223-4, Recovered Material Certification. This provision applies to solicitations that are for, or specify the use of, EPA- designated items.

(xix) 52.223-22, Public Disclosure of Greenhouse Gas Emissions and Reduction Goals--Representation. This provision applies to solicitations that include the provision at 52.204-7.

(xx) 52.225-2, Buy American Certificate. This provision applies to solicitations containing the clause at 52.225-1.

(xxi) 52.225-4, Buy American-Free Trade Agreements-Israeli Trade Act Certificate. (Basic, Alternates II and III.) This provision applies to solicitations containing the clause at 52.225-3.

(A) If the acquisition value is less than \$50,000, the basic provision applies.

(B) If the acquisition value is \$50,000 or more but is less than \$100,000, the provision with its Alternate II applies.

(C) If the acquisition value is \$100,000 or more but is less than \$102,280, the provision with its Alternate III applies.

(xxii) 52.225-6, Trade Agreements Certificate. This provision applies to solicitations containing the clause at 52.225-5.

(xxiii) 52.225-20, Prohibition on Conducting Restricted Business Operations in Sudan--Certification. This provision applies to all solicitations.

(xxiv) 52.225-25, Prohibition on Contracting with Entities Engaging in Certain Activities or Transactions Relating to Iran—Representation and Certification. This provision applies to all solicitations.

(xxv) 52.226-2, Historically Black College or University and Minority Institution Representation. This provision applies to solicitations for research, studies, supplies, or services of the type normally acquired from higher educational institutions.

(2) The following representations or certifications are applicable as indicated by the Contracting Officer:

[Contracting Officer check as appropriate.]

(i) 52.204-17, Ownership or Control of Offeror.

(ii) 52.204-20, Predecessor of Offeror.

(iii) 52.222-18, Certification Regarding Knowledge of Child Labor for Listed End Products.

(iv) 52.222-48, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment--Certification.

(v) 52.222-52 Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services--Certification.

(vi) 52.227-6, Royalty Information.

(A) Basic.

(B) Alternate I.

(vii) 52.227-15, Representation of Limited Rights Data and Restricted Computer Software.

(d) The Offeror has completed the annual representations and certifications electronically in SAM accessed through <https://www.sam.gov>. After reviewing the SAM information, the Offeror verifies by submission of the offer that the representations and certifications currently posted electronically that apply to this solicitation as indicated in paragraph (c) of this provision have been entered or updated within the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard applicable to the NAICS code referenced for this solicitation), as of the date of this offer and are incorporated in this offer by reference (see FAR 4.1201); except for the changes identified below [offeror to insert changes, identifying change by clause number, title, date]. These amended representation(s) and/or certification(s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer.

FAR Clause	Title	Date	Change
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Any changes provided by the offeror are applicable to this solicitation only, and do not result in an update to the representations and certifications posted on SAM.

(End of provision)

Section L - Instructions, Conditions and Notices to Bidders

INSTRUCTION TO OFFERORS

Quotes can be submitted via PIEE Solicitation at <https://piee.eb.mil/> by searching the Solicitation Number W912DR25Q0021.

Request for Information (RFI) Questions concerning this solicitation must be submitted via email no later than 29 May 2025 at 11:00 a.m. EST to Angela Padua at angela.s.padua@usace.army.mil and Sharon Alexander at sharon.l.alexander@usace.army.mil. This will allow responses to be posted prior to solicitation closing.

SUBMISSION REQUIREMENTS

The Government will award a firm-fixed-price (FFP) contract to the responsible offeror whose offer conforms to the requirements as stated in this request for quotation (RFQ). The award will be made using the Lowest Price Technically Acceptable (LPTA) method based on the following three (3) evaluation factors:

Technical
Past Performance(s)
Price

The Government intends to evaluate quotes and make award without questions to offerors. Therefore, the Offeror's initial quote should contain the Offeror's best terms from a Technical and Cost standpoint. Unclear quotes may not result in questions for clarifications. Offers with an omission or unclear quote may be judged to mean the contractor does not fully understand the requirements or understand what it takes to meet the requirements, regardless of the proposed cost/price, and will be rated unacceptable. In that case, the Offeror may be found unacceptable, and ineligible for award. The Government reserves the right to ask questions of offerors if the Contracting Officer determines them to be necessary.

OFFEROR(S) SHALL PROVIDE A QUOTE FOR EACH SERVICE ITEM ON THE "BID/PRICE SCHEDULE". PERCENTAGES (%) SHALL NOT BE ACCEPTED.

FAILURE TO ABIDE BY THE ITEM ABOVE MAY RESULT IN QUOTE BEING CONSIDERED "NON-RESPONSIVE" AND INELIGIBLE FOR AWARD

WAGE DETERMINATION

"REGISTER OF WAGE DETERMINATIONS UNDER THE SERVICE CONTRACT ACT By direction of the Secretary of Labor		U.S. DEPARTMENT OF LABOR EMPLOYMENT STANDARDS ADMINISTRATION WAGE AND HOUR DIVISION WASHINGTON D.C. 20210
Daniel W. Simms Director	Division of Wage Determinations	Wage Determination No.: 2015-5793 Revision No.: 29 Date Of Last Revision: 04/25/2025

Note: Contracts subject to the Service Contract Act are generally required to pay at least the applicable minimum wage rate required under Executive Order 14026 or Executive Order 13658.

If the contract is entered into on or after January 30, 2022, or the	Executive Order 14026 generally applies to the contract.
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contract is renewed or extended (e.g., an option is exercised) on or after January 30, 2022: determination,	The contractor must pay all covered workers at least \$17.75 per hour (or the applicable wage rate listed on this wage if it is higher) for all hours spent performing on the contract in 2025.
If the contract was awarded on or between January 1, 2015 and January 29, 2022, and the contract is not renewed or extended on or after January 30, 2022: determination,	Executive Order 13658 generally applies to the contract. The contractor must pay all covered workers at least \$13.30 per hour (or the applicable wage rate listed on this wage if it is higher) for all hours spent performing on the contract in 2025.

The applicable Executive Order minimum wage rate will be adjusted annually.
Additional
information on contractor requirements and worker protections under the Executive
Orders
is available at www.dol.gov/whd/govcontracts.

State: Pennsylvania

Area: Pennsylvania Counties of Bedford, Fulton, Huntingdon, Somerset

****Fringe Benefits Required Follow the Occupational Listing****

OCCUPATION CODE - TITLE	FOOTNOTE	RATE
01000 - Administrative Support And Clerical Occupations		
01011 - Accounting Clerk I		16.74***
01012 - Accounting Clerk II		18.79
01013 - Accounting Clerk III		21.19
01020 - Administrative Assistant		29.17
01035 - Court Reporter		20.72
01041 - Customer Service Representative I		14.86***
01042 - Customer Service Representative II		16.21***
01043 - Customer Service Representative III		18.20
01051 - Data Entry Operator I		16.72***
01052 - Data Entry Operator II		18.25
01060 - Dispatcher, Motor Vehicle		22.29
01070 - Document Preparation Clerk		17.64***

01090 - Duplicating Machine Operator	17.64***
01111 - General Clerk I	14.90***
01112 - General Clerk II	16.26***
01113 - General Clerk III	18.25
01120 - Housing Referral Assistant	23.09
01141 - Messenger Courier	16.04***
01191 - Order Clerk I	17.05***
01192 - Order Clerk II	18.60
01261 - Personnel Assistant (Employment) I	19.16
01262 - Personnel Assistant (Employment) II	21.43
01263 - Personnel Assistant (Employment) III	23.90
01270 - Production Control Clerk	25.59
01290 - Rental Clerk	17.61***
01300 - Scheduler, Maintenance	18.52
01311 - Secretary I	18.52
01312 - Secretary II	20.72
01313 - Secretary III	23.09
01320 - Service Order Dispatcher	19.93
01410 - Supply Technician	29.17
01420 - Survey Worker	19.23
01460 - Switchboard Operator/Receptionist	15.81***
01531 - Travel Clerk I	16.50***
01532 - Travel Clerk II	18.52
01533 - Travel Clerk III	20.72
01611 - Word Processor I	15.09***
01612 - Word Processor II	16.93***
01613 - Word Processor III	18.94
05000 - Automotive Service Occupations	
05005 - Automobile Body Repairer, Fiberglass	23.05
05010 - Automotive Electrician	20.43
05040 - Automotive Glass Installer	19.46
05070 - Automotive Worker	19.46
05110 - Mobile Equipment Servicer	17.50***
05130 - Motor Equipment Metal Mechanic	21.37
05160 - Motor Equipment Metal Worker	19.46
05190 - Motor Vehicle Mechanic	21.37
05220 - Motor Vehicle Mechanic Helper	16.59***
05250 - Motor Vehicle Upholstery Worker	18.48
05280 - Motor Vehicle Wrecker	19.46
05310 - Painter, Automotive	20.60
05340 - Radiator Repair Specialist	19.46
05370 - Tire Repairer	17.99
05400 - Transmission Repair Specialist	21.37
07000 - Food Preparation And Service Occupations	
07010 - Baker	15.76***
07041 - Cook I	14.94***
07042 - Cook II	16.71***
07070 - Dishwasher	12.75***
07130 - Food Service Worker	13.25***
07210 - Meat Cutter	17.29***
07260 - Waiter/Waitress	13.24***
09000 - Furniture Maintenance And Repair Occupations	
09010 - Electrostatic Spray Painter	20.59
09040 - Furniture Handler	14.67***
09080 - Furniture Refinisher	20.58

09090 - Furniture Refinisher Helper	16.58***
09110 - Furniture Repairer, Minor	18.61
09130 - Upholsterer	20.59
11000 - General Services And Support Occupations	
11030 - Cleaner, Vehicles	16.73***
11060 - Elevator Operator	15.81***
11090 - Gardener	20.60
11122 - Housekeeping Aide	15.81***
11150 - Janitor	15.81***
11210 - Laborer, Grounds Maintenance	17.17***
11240 - Maid or Houseman	13.92***
11260 - Pruner	16.12***
11270 - Tractor Operator	19.39
11330 - Trail Maintenance Worker	17.17***
11360 - Window Cleaner	16.98***
12000 - Health Occupations	
12010 - Ambulance Driver	17.95
12011 - Breath Alcohol Technician	24.49
12012 - Certified Occupational Therapist Assistant	29.08
12015 - Certified Physical Therapist Assistant	29.10
12020 - Dental Assistant	21.96
12025 - Dental Hygienist	31.24
12030 - EKG Technician	30.06
12035 - Electroneurodiagnostic Technologist	30.06
12040 - Emergency Medical Technician	17.95
12071 - Licensed Practical Nurse I	21.89
12072 - Licensed Practical Nurse II	24.49
12073 - Licensed Practical Nurse III	27.29
12100 - Medical Assistant	18.11
12130 - Medical Laboratory Technician	29.76
12160 - Medical Record Clerk	19.47
12190 - Medical Record Technician	21.89
12195 - Medical Transcriptionist	21.10
12210 - Nuclear Medicine Technologist	53.81
12221 - Nursing Assistant I	13.11***
12222 - Nursing Assistant II	14.75***
12223 - Nursing Assistant III	16.10***
12224 - Nursing Assistant IV	18.07
12235 - Optical Dispenser	18.06
12236 - Optical Technician	21.89
12250 - Pharmacy Technician	17.23***
12280 - Phlebotomist	18.03
12305 - Radiologic Technologist	30.84
12311 - Registered Nurse I	25.98
12312 - Registered Nurse II	31.78
12313 - Registered Nurse II, Specialist	31.78
12314 - Registered Nurse III	38.45
12315 - Registered Nurse III, Anesthetist	38.45
12316 - Registered Nurse IV	46.10
12317 - Scheduler (Drug and Alcohol Testing)	30.33
12320 - Substance Abuse Treatment Counselor	26.47
13000 - Information And Arts Occupations	
13011 - Exhibits Specialist I	21.25
13012 - Exhibits Specialist II	27.77
13013 - Exhibits Specialist III	29.81

13041 - Illustrator I	19.11
13042 - Illustrator II	24.36
13043 - Illustrator III	26.62
13047 - Librarian	24.59
13050 - Library Aide/Clerk	10.78***
13054 - Library Information Technology Systems Administrator	21.76
13058 - Library Technician	17.56***
13061 - Media Specialist I	16.02***
13062 - Media Specialist II	17.92
13063 - Media Specialist III	19.99
13071 - Photographer I	15.70***
13072 - Photographer II	20.08
13073 - Photographer III	21.76
13074 - Photographer IV	26.62
13075 - Photographer V	32.21
13090 - Technical Order Library Clerk	15.49***
13110 - Video Teleconference Technician	18.24
14000 - Information Technology Occupations	
14041 - Computer Operator I	19.69
14042 - Computer Operator II	22.02
14043 - Computer Operator III	24.54
14044 - Computer Operator IV	27.28
14045 - Computer Operator V	30.21
14071 - Computer Programmer I	(see 1) 23.90
14072 - Computer Programmer II	(see 1)
14073 - Computer Programmer III	(see 1)
14074 - Computer Programmer IV	(see 1)
14101 - Computer Systems Analyst I	(see 1)
14102 - Computer Systems Analyst II	(see 1)
14103 - Computer Systems Analyst III	(see 1)
14150 - Peripheral Equipment Operator	19.69
14160 - Personal Computer Support Technician	27.28
14170 - System Support Specialist	30.21
15000 - Instructional Occupations	
15010 - Aircrew Training Devices Instructor (Non-Rated)	32.16
15020 - Aircrew Training Devices Instructor (Rated)	38.91
15030 - Air Crew Training Devices Instructor (Pilot)	46.65
15050 - Computer Based Training Specialist / Instructor	32.16
15060 - Educational Technologist	36.10
15070 - Flight Instructor (Pilot)	46.65
15080 - Graphic Artist	22.88
15085 - Maintenance Test Pilot, Fixed, Jet/Prop	46.65
15086 - Maintenance Test Pilot, Rotary Wing	46.65
15088 - Non-Maintenance Test/Co-Pilot	46.65
15090 - Technical Instructor	23.09
15095 - Technical Instructor/Course Developer	28.24
15110 - Test Proctor	18.66
15120 - Tutor	18.66
16000 - Laundry, Dry-Cleaning, Pressing And Related Occupations	
16010 - Assembler	12.05***
16030 - Counter Attendant	12.05***
16040 - Dry Cleaner	15.11***
16070 - Finisher, Flatwork, Machine	12.05***
16090 - Presser, Hand	12.05***

16110 - Presser, Machine, Drycleaning	12.05***
16130 - Presser, Machine, Shirts	12.05***
16160 - Presser, Machine, Wearing Apparel, Laundry	12.05***
16190 - Sewing Machine Operator	16.16***
16220 - Tailor	17.16***
16250 - Washer, Machine	13.04***
19000 - Machine Tool Operation And Repair Occupations	
19010 - Machine-Tool Operator (Tool Room)	21.79
19040 - Tool And Die Maker	25.81
21000 - Materials Handling And Packing Occupations	
21020 - Forklift Operator	24.66
21030 - Material Coordinator	25.59
21040 - Material Expediter	25.59
21050 - Material Handling Laborer	18.41
21071 - Order Filler	18.86
21080 - Production Line Worker (Food Processing)	24.66
21110 - Shipping Packer	19.82
21130 - Shipping/Receiving Clerk	19.82
21140 - Store Worker I	18.93
21150 - Stock Clerk	23.49
21210 - Tools And Parts Attendant	24.66
21410 - Warehouse Specialist	24.66
23000 - Mechanics And Maintenance And Repair Occupations	
23010 - Aerospace Structural Welder	32.62
23019 - Aircraft Logs and Records Technician	27.14
23021 - Aircraft Mechanic I	31.41
23022 - Aircraft Mechanic II	32.62
23023 - Aircraft Mechanic III	33.95
23040 - Aircraft Mechanic Helper	24.09
23050 - Aircraft, Painter	30.03
23060 - Aircraft Servicer	27.14
23070 - Aircraft Survival Flight Equipment Technician	30.03
23080 - Aircraft Worker	28.60
23091 - Aircrew Life Support Equipment (ALSE) Mechanic I	28.60
23092 - Aircrew Life Support Equipment (ALSE) Mechanic II	31.41
23110 - Appliance Mechanic	27.46
23120 - Bicycle Repairer	25.62
23125 - Cable Splicer	48.08
23130 - Carpenter, Maintenance	23.59
23140 - Carpet Layer	24.13
23160 - Electrician, Maintenance	28.60
23181 - Electronics Technician Maintenance I	29.19
23182 - Electronics Technician Maintenance II	30.65
23183 - Electronics Technician Maintenance III	32.07
23260 - Fabric Worker	27.14
23290 - Fire Alarm System Mechanic	31.41
23310 - Fire Extinguisher Repairer	25.62
23311 - Fuel Distribution System Mechanic	34.72
23312 - Fuel Distribution System Operator	28.46
23370 - General Maintenance Worker	22.10
23380 - Ground Support Equipment Mechanic	31.41
23381 - Ground Support Equipment Servicer	27.14
23382 - Ground Support Equipment Worker	28.60

23391 - Gunsmith I	25.62
23392 - Gunsmith II	28.60
23393 - Gunsmith III	31.41
23410 - Heating, Ventilation And Air-Conditioning Mechanic	25.68
23411 - Heating, Ventilation And Air Contidioning Mechanic (Research Facility)	26.67
23430 - Heavy Equipment Mechanic	27.51
23440 - Heavy Equipment Operator	23.71
23460 - Instrument Mechanic	31.41
23465 - Laboratory/Shelter Mechanic	30.03
23470 - Laborer	18.41
23510 - Locksmith	30.03
23530 - Machinery Maintenance Mechanic	31.33
23550 - Machinist, Maintenance	24.45
23580 - Maintenance Trades Helper	17.06***
23591 - Metrology Technician I	31.41
23592 - Metrology Technician II	32.62
23593 - Metrology Technician III	33.95
23640 - Millwright	31.98
23710 - Office Appliance Repairer	30.03
23760 - Painter, Maintenance	21.29
23790 - Pipefitter, Maintenance	29.30
23810 - Plumber, Maintenance	27.30
23820 - Pneudraulic Systems Mechanic	31.41
23850 - Rigger	31.41
23870 - Scale Mechanic	28.60
23890 - Sheet-Metal Worker, Maintenance	28.36
23910 - Small Engine Mechanic	20.03
23931 - Telecommunications Mechanic I	35.13
23932 - Telecommunications Mechanic II	36.49
23950 - Telephone Lineman	36.97
23960 - Welder, Combination, Maintenance	24.06
23965 - Well Driller	27.75
23970 - Woodcraft Worker	31.41
23980 - Woodworker	25.62
24000 - Personal Needs Occupations	
24550 - Case Manager	18.77
24570 - Child Care Attendant	12.34***
24580 - Child Care Center Clerk	15.38***
24610 - Chore Aide	14.26***
24620 - Family Readiness And Support Services Coordinator	18.77
24630 - Homemaker	18.77
25000 - Plant And System Operations Occupations	
25010 - Boiler Tender	30.36
25040 - Sewage Plant Operator	25.38
25070 - Stationary Engineer	30.36
25190 - Ventilation Equipment Tender	23.46
25210 - Water Treatment Plant Operator	25.38
27000 - Protective Service Occupations	
27004 - Alarm Monitor	20.65
27007 - Baggage Inspector	16.70***
27008 - Corrections Officer	30.55
27010 - Court Security Officer	29.95

27030 - Detection Dog Handler	18.68
27040 - Detention Officer	30.55
27070 - Firefighter	29.95
27101 - Guard I	16.70***
27102 - Guard II	18.68
27131 - Police Officer I	32.71
27132 - Police Officer II	36.35
28000 - Recreation Occupations	
28041 - Carnival Equipment Operator	13.57***
28042 - Carnival Equipment Repairer	14.43***
28043 - Carnival Worker	11.09***
28210 - Gate Attendant/Gate Tender	17.68***
28310 - Lifeguard	14.55***
28350 - Park Attendant (Aide)	19.77
28510 - Recreation Aide/Health Facility Attendant	14.43***
28515 - Recreation Specialist	24.49
28630 - Sports Official	15.75***
28690 - Swimming Pool Operator	19.15
29000 - Stevedoring/Longshoremen Occupational Services	
29010 - Blocker And Bracer	25.31
29020 - Hatch Tender	25.31
29030 - Line Handler	25.31
29041 - Stevedore I	24.05
29042 - Stevedore II	26.58
30000 - Technical Occupations	
30010 - Air Traffic Control Specialist, Center (HFO) (see 2)	48.11
30011 - Air Traffic Control Specialist, Station (HFO) (see 2)	33.17
30012 - Air Traffic Control Specialist, Terminal (HFO) (see 2)	36.53
30021 - Archeological Technician I	19.62
30022 - Archeological Technician II	21.94
30023 - Archeological Technician III	27.19
30030 - Cartographic Technician	27.19
30040 - Civil Engineering Technician	27.19
30051 - Cryogenic Technician I	30.11
30052 - Cryogenic Technician II	33.26
30061 - Drafter/CAD Operator I	19.62
30062 - Drafter/CAD Operator II	21.94
30063 - Drafter/CAD Operator III	24.47
30064 - Drafter/CAD Operator IV	30.11
30081 - Engineering Technician I	16.42***
30082 - Engineering Technician II	18.43
30083 - Engineering Technician III	20.98
30084 - Engineering Technician IV	25.53
30085 - Engineering Technician V	31.23
30086 - Engineering Technician VI	37.78
30090 - Environmental Technician	27.19
30095 - Evidence Control Specialist	27.19
30210 - Laboratory Technician	29.67
30221 - Latent Fingerprint Technician I	30.11
30222 - Latent Fingerprint Technician II	33.26
30240 - Mathematical Technician	27.19
30361 - Paralegal/Legal Assistant I	23.80
30362 - Paralegal/Legal Assistant II	29.48
30363 - Paralegal/Legal Assistant III	36.05
30364 - Paralegal/Legal Assistant IV	43.62

30375 - Petroleum Supply Specialist	33.26
30390 - Photo-Optics Technician	27.19
30395 - Radiation Control Technician	33.26
30461 - Technical Writer I	27.19
30462 - Technical Writer II	33.26
30463 - Technical Writer III	40.15
30491 - Unexploded Ordnance (UXO) Technician I	30.57
30492 - Unexploded Ordnance (UXO) Technician II	36.99
30493 - Unexploded Ordnance (UXO) Technician III	44.34
30494 - Unexploded (UXO) Safety Escort	30.57
30495 - Unexploded (UXO) Sweep Personnel	30.57
30501 - Weather Forecaster I	30.11
30502 - Weather Forecaster II	36.62
30620 - Weather Observer, Combined Upper Air Or (see 2)	24.47
Surface Programs	
30621 - Weather Observer, Senior (see 2)	27.19
31000 - Transportation/Mobile Equipment Operation Occupations	
31010 - Airplane Pilot	36.99
31020 - Bus Aide	14.98***
31030 - Bus Driver	19.88
31043 - Driver Courier	16.54***
31260 - Parking and Lot Attendant	14.23***
31290 - Shuttle Bus Driver	14.65***
31310 - Taxi Driver	12.57***
31361 - Truckdriver, Light	17.57***
31362 - Truckdriver, Medium	18.57
31363 - Truckdriver, Heavy	24.44
31364 - Truckdriver, Tractor-Trailer	24.44
99000 - Miscellaneous Occupations	
99020 - Cabin Safety Specialist	18.04
99030 - Cashier	13.40***
99050 - Desk Clerk	13.54***
99095 - Embalmer	30.54
99130 - Flight Follower	30.57
99251 - Laboratory Animal Caretaker I	17.13***
99252 - Laboratory Animal Caretaker II	18.22
99260 - Marketing Analyst	26.51
99310 - Mortician	30.54
99410 - Pest Controller	21.69
99510 - Photofinishing Worker	16.07***
99710 - Recycling Laborer	21.13
99711 - Recycling Specialist	23.87
99730 - Refuse Collector	19.82
99810 - Sales Clerk	14.13***
99820 - School Crossing Guard	19.99
99830 - Survey Party Chief	24.48
99831 - Surveying Aide	14.57***
99832 - Surveying Technician	22.23
99840 - Vending Machine Attendant	16.95***
99841 - Vending Machine Repairer	20.31
99842 - Vending Machine Repairer Helper	16.95***

***Workers in this classification may be entitled to a higher minimum wage under Executive Order 14026 (\$17.75 per hour) or 13658 (\$13.30 per hour). Please see the Note at the top of the wage determination for more information. Please also note that the minimum wage requirements of Executive Order 14026 and 13658 are not currently being enforced as to contracts or contract-like instruments entered into with the federal government in connection with seasonal recreational services or seasonal recreational equipment rental for the general public on federal lands. The minimum wage requirements of Executive Order 14026 also are not currently being enforced as to any contract or subcontract to which the states of Texas, Louisiana, or Mississippi, including their agencies, are a party.

Note: Executive Order (EO) 13706, Establishing Paid Sick Leave for Federal Contractors, applies to all contracts subject to the Service Contract Act for which the contract is awarded (and any solicitation was issued) on or after January 1, 2017. If this contract is covered by the EO, the contractor must provide employees with 1 hour of paid sick leave for every 30 hours they work, up to 56 hours of paid sick leave each year. Employees must be permitted to use paid sick leave for their own illness, injury or other health-related needs, including preventive care; to assist a family member (or person who is like family to the employee) who is ill, injured, or has other health-related needs, including preventive care; or for reasons resulting from, or to assist a family member (or person who is like family to the employee) who is the victim of, domestic violence, sexual assault, or stalking. Additional information on contractor requirements and worker protections under the EO is available at www.dol.gov/whd/govcontracts.

ALL OCCUPATIONS LISTED ABOVE RECEIVE THE FOLLOWING BENEFITS:

HEALTH & WELFARE: \$5.36 per hour, up to 40 hours per week, or \$214.40 per week or \$929.07 per month

HEALTH & WELFARE EO 13706: \$4.93 per hour, up to 40 hours per week, or \$197.20 per week, or \$854.53 per month*

*This rate is to be used only when compensating employees for performance on an SCA-covered contract also covered by EO 13706, Establishing Paid Sick Leave for Federal Contractors. A contractor may not receive credit toward its SCA obligations for any paid sick leave provided pursuant to EO 13706.

VACATION: 2 weeks paid vacation after 1 year of service with a contractor or successor, 3 weeks after 8 years, and 4 weeks after 15 years. Length of service includes the whole span of continuous service with the present contractor or successor, wherever employed, and with the predecessor contractors in the performance of similar work at the same Federal facility. (See 29 CFR 4.173)

HOLIDAYS: A minimum of twelve paid holidays per year: New Year's Day, Martin Luther King Jr's Birthday, Washington's Birthday, Good Friday, Memorial Day, Juneteenth National Independence Day, Independence Day, Labor Day, Columbus Day, Veterans' Day, Thanksgiving Day, and Christmas Day. A contractor may substitute for any of the named holidays another day off with pay in accordance with a plan communicated to the employees involved.) (See 29 CFR 4.174)

THE OCCUPATIONS WHICH HAVE NUMBERED FOOTNOTES IN PARENTHESES RECEIVE THE FOLLOWING:

1) COMPUTER EMPLOYEES: This wage determination does not apply to any individual employed in a bona fide executive, administrative, or professional capacity, as defined in 29 C.F.R. Part 541. (See 41 C.F.R. 6701(3)). Because most Computer Systems Analysts and Computer Programmers who are paid at least \$27.63 per hour (or at least \$684 per week if paid on a salary or fee basis) likely qualify as exempt computer professionals under 29 U.S.C. 213(a)(1) and 29 U.S.C. 213(a)(17), this wage determination may not include wage rates for all occupations within those job families. In such instances, a conformance will be necessary if there are nonexempt employees in these job families working on the contract.

Job titles vary widely and change quickly in the computer industry, and are not determinative of whether an employee is an exempt computer professional. To be exempt, computer employees who satisfy the compensation requirements must also have a primary duty that consists of:

(1) The application of systems analysis techniques and procedures, including consulting with users, to determine hardware, software or system functional specifications;

(2) The design, development, documentation, analysis, creation, testing or modification of computer systems or programs, including prototypes, based on and related to user or system design specifications;

(3) The design, documentation, testing, creation or modification of computer programs related to machine operating systems; or

(4) A combination of the aforementioned duties, the performance of which requires the same level of skills. (29 C.F.R. 541.400).

Any computer employee who meets the applicable compensation requirements and the above duties test qualifies as an exempt computer professional under both section 13(a)(1) and section 13(a)(17) of the Fair Labor Standards Act. (Field Assistance Bulletin No. 2006-3 (Dec. 14, 2006)). Accordingly, this wage determination will not apply to any exempt computer employee regardless of which of these two exemptions is utilized.

2) AIR TRAFFIC CONTROLLERS AND WEATHER OBSERVERS - NIGHT PAY & SUNDAY PAY: If you work at night as part of a regular tour of duty, you will earn a night differential and receive an additional 10% of basic pay for any hours worked between 6pm and 6am.

If you are a full-time employed (40 hours a week) and Sunday is part of your regularly scheduled workweek, you are paid at your rate of basic pay plus a Sunday premium of 25% of your basic rate for each hour of Sunday work which is not overtime (i.e. occasional work on Sunday outside the normal tour of duty is considered overtime work).

**** HAZARDOUS PAY DIFFERENTIAL ****

An 8 percent differential is applicable to employees employed in a position that represents a high degree of hazard when working with or in close proximity to ordnance, explosives, and incendiary materials. This includes work such as screening, blending, dying, mixing, and pressing of sensitive ordnance, explosives, and pyrotechnic compositions such as lead azide, black powder and photoflash powder.

All dry-house activities involving propellants or explosives. Demilitarization,

modification, renovation, demolition, and maintenance operations on sensitive ordnance, explosives and incendiary materials. All operations involving re-grading and cleaning of artillery ranges.

A 4 percent differential is applicable to employees employed in a position that represents a low degree of hazard when working with, or in close proximity to ordnance, (or employees possibly adjacent to) explosives and incendiary materials which involves potential injury such as laceration of hands, face, or arms of the employee engaged in the operation, irritation of the skin, minor burns and the like; minimal damage to immediate or adjacent work area or equipment being used. All operations involving, unloading, storage, and hauling of ordnance, explosive, and incendiary ordnance material other than small arms ammunition. These differentials are only applicable to work that has been specifically designated by the agency for ordnance, explosives, and incendiary material differential pay.

**** UNIFORM ALLOWANCE ****

If employees are required to wear uniforms in the performance of this contract (either by the terms of the Government contract, by the employer, by the state or local law, etc.), the cost of furnishing such uniforms and maintaining (by laundering or dry cleaning) such uniforms is an expense that may not be borne by an employee where such cost reduces the hourly rate below that required by the wage determination. The Department of Labor will accept payment in accordance with the following standards as compliance:

The contractor or subcontractor is required to furnish all employees with an adequate number of uniforms without cost or to reimburse employees for the actual cost of the uniforms. In addition, where uniform cleaning and maintenance is made the responsibility of the employee, all contractors and subcontractors subject to this wage determination shall (in the absence of a bona fide collective bargaining agreement providing for a different amount, or the furnishing of contrary affirmative proof as to the actual cost), reimburse all employees for such cleaning and maintenance at a rate of \$3.35 per week (or \$.67 cents per day). However, in those instances where the uniforms furnished are made of "wash and wear" materials, may be routinely washed and dried with other personal garments, and do not require any special treatment such as dry cleaning, daily washing, or commercial laundering in order to meet the cleanliness or appearance standards set by the terms of the Government contract, by the contractor, by law, or by the nature of the work, there is no requirement that employees be reimbursed for uniform maintenance costs.

**** SERVICE CONTRACT ACT DIRECTORY OF OCCUPATIONS ****

The duties of employees under job titles listed are those described in the "Service Contract Act Directory of Occupations", Fifth Edition (Revision 1), dated September 2015, unless otherwise indicated.

**** REQUEST FOR AUTHORIZATION OF ADDITIONAL CLASSIFICATION AND WAGE RATE, Standard Form 1444 (SF-1444) ****

Conformance Process:

The contracting officer shall require that any class of service employee which is

not listed herein and which is to be employed under the contract (i.e., the work to be performed is not performed by any classification listed in the wage determination), be classified by the contractor so as to provide a reasonable relationship (i.e., appropriate level of skill comparison) between such unlisted classifications and the classifications listed in the wage determination (See 29 CFR 4.6(b)(2)(i)). Such conforming procedures shall be initiated by the contractor prior to the performance of contract work by such unlisted class(es) of employees (See 29 CFR 4.6(b)(2)(ii)). The Wage and Hour Division shall make a final determination of conformed classification, wage rate, and/or fringe benefits which shall be paid to all employees performing in the classification from the first day of work on which contract work is performed by them in the classification. Failure to pay such unlisted employees the compensation agreed upon by the interested parties and/or fully determined by the Wage and Hour Division retroactive to the date such class of employees commenced contract work shall be a violation of the Act and this contract. (See 29 CFR 4.6(b)(2)(v)). When multiple wage determinations are included in a contract, a separate SF-1444 should be prepared for each wage determination to which a class(es) is to be conformed.

The process for preparing a conformance request is as follows:

- 1) When preparing the bid, the contractor identifies the need for a conformed occupation(s) and computes a proposed rate(s).
- 2) After contract award, the contractor prepares a written report listing in order the proposed classification title(s), a Federal grade equivalency (FGE) for each proposed classification(s), job description(s), and rationale for proposed wage rate(s), including information regarding the agreement or disagreement of the authorized representative of the employees involved, or where there is no authorized representative, the employees themselves. This report should be submitted to the contracting officer no later than 30 days after such unlisted class(es) of employees performs any contract work.
- 3) The contracting officer reviews the proposed action and promptly submits a report of the action, together with the agency's recommendations and pertinent information including the position of the contractor and the employees, to the U.S. Department of Labor, Wage and Hour Division, for review (See 29 CFR 4.6(b)(2)(ii)).
- 4) Within 30 days of receipt, the Wage and Hour Division approves, modifies, or disapproves the action via transmittal to the agency contracting officer, or notifies the contracting officer that additional time will be required to process the request.
- 5) The contracting officer transmits the Wage and Hour Division's decision to the contractor.
- 6) Each affected employee shall be furnished by the contractor with a written copy of such determination or it shall be posted as a part of the wage determination (See 29 CFR 4.6(b)(2)(iii)).

Information required by the Regulations must be submitted on SF-1444 or bond paper.

When preparing a conformance request, the "Service Contract Act Directory of Occupations" should be used to compare job definitions to ensure that duties requested are not performed by a classification already listed in the wage determination. Remember, it is not the job title, but the required tasks that

determine whether a class is included in an established wage determination. Conformances may not be used to artificially split, combine, or subdivide classifications listed in the wage determination (See 29 CFR 4.152(c)(1))."

CLAUSES INCORPORATED BY REFERENCE

52.204-6	Unique Entity Identifier	OCT 2016
52.204-7	System for Award Management	NOV 2024
52.222-56	Certification Regarding Trafficking in Persons Compliance Plan.	OCT 2020

CLAUSES INCORPORATED BY FULL TEXT

52.216-1 TYPE OF CONTRACT (APR 1984)

The Government contemplates award of a Firm Fixed Price Service contract resulting from this solicitation.

(End of provision)

Section M - Evaluation Factors for Award

EVALUATION CRITERIA

EVALUATION CRITERIA:

A. TECHNICAL:

The offer will be evaluated to ensure all the items below are provided:

Technical Requirements: This information consists of the Offeror's intended approach to executing the contract.

1. Equipment plan: The proposed equipment list should only include the equipment which will be used on this contract. Equipment listed should be identified to apply herbicidal materials to target aquatic vegetation. Include size, make, model, and ownership (owned or rented) of equipment. All boats must be a minimum length of 18 feet as per EM 385-1-1. The Contractor must possess application methods for each boat. Two people are always required on the boat during aquatic herbicide treatment. The Contractor is required to confirm and provide two minimum 18 ft boats with SONAR and GPS, with the ability to load treatment plots onto unit as well as provide treatment tracks. Safety Equipment: each boat, shall contain all safety equipment required by the US Coast Guard Auxiliary for the size of the boat and the number of persons and equipment aboard and safety requirements as detailed in the USACE Health and Safety Manual, EM 385-1-1, available at

<http://www.usace.army.mil/SafetyandOccupationalHealth/SafetyandHealthRequirementsManual.aspx>.

2. Capabilities plan: The proposed capabilities should include adequate documentation to illustrate the Offeror's capabilities to successfully complete the work identified within the solicitation. The offeror must demonstrate history of successful aquatic plant management on waterbodies 500A and larger for a minimum of 4 years. Offeror shall submit a schedule of work determining ideal treatment dates and a staffing plan with whom will conduct the treatments. Staffing plan shall include two persons wearing a U.S. Coast Guard approved serviceable lifejacket on each boat during application.

3. Certifications/Insurances: The Offeror must have one employee with a current applicator certification/license on site during all applications. That employee must possess a current Pennsylvania Commercial Applicators Pesticide License under the appropriate category for which treatment is taking place. The Offeror must provide proof of certification. The Offeror must also provide proof of insurance. The Government will check Offeror's equipment, staffing and capabilities plans for each project for completeness and reasonableness. Government will evaluate the clarity and strength of the overall organization and how well it is organized and structured to execute the entire scope of work. The Government will evaluate the capability of the firm to execute the project. The Government will evaluate the Contractor's resources to determine if it has the capability to self-perform the required amount of the project, in accordance with public policy to assure adequate interest in and supervision of all work.

Technical Rating Adjectival Ratings

Acceptable

Unacceptable

Definition

Offeror clearly meets the minimum requirements of the solicitation.

Offeror does not clearly meet the minimum requirements of the solicitation.

B. PAST PERFORMANCE:

Past performance refers to the quality of recent project experience from the customer's perspective. The Offeror shall arrange for the reference customer point of contact for three projects to fill out the Past Performance Questionnaire and return directly to the Contract Specialist. The questionnaires must be forwarded directly by the references. Ensure that the reference is clearly marked for the applicable Offeror when submitted. The Government will not release the questionnaire forms to the Offeror at any time, in order for the Government to solicit candid, unbiased responses and comments. In addition, the Offeror shall provide three (3) references for previously completed jobs. References shall include a point of contact and contact information. These references must be relevant to the work which will be performed in this contract and recent (within the past three (3) years).

Past Performance Rating Adjectival Rating

Acceptable

Unacceptable

Neutral

Definition

Based on the Offeror's performance record, the Government has a reasonable expectation that the Offeror will successfully perform the required effort.

Based on the Offeror's performance record, the Government does not have a reasonable expectation that the Offeror will be able to successfully perform the required effort.

No past performance submitted.

C. PRICE

The Offeror's price will be evaluated to determine price reasonableness.

The bid schedule must be filled out completely. Government template will be provided. All line items must be priced. Quotes providing partial pricing shall be considered non-responsive.

Pricing will be evaluated in accordance with FAR 15.402. The Government will evaluate quotes for award purposes by adding the total of all contract line-item prices to ensure that pricing is not unbalanced.

Prices which are excessively high or low may be considered unrealistic and unreasonable may receive no further consideration. The Government reserves the right to request additional pricing information after receiving the quote if it cannot determine price reasonable with the information provided.

Offeror must complete all line items to be considered for award. This submission item is not rated. Award will be made for the lowest-price, technically acceptable offer.